

# MLP-1<sup>TM</sup>

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## Controlled Legal Writing<sup>TM</sup>

*Standard for drafting and summarizing legal texts*

Issue 2 — Draft for review

Michigan Legal Publishing Ltd.

# Notices

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# General introduction

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## What is Controlled Legal Writing?

Controlled Legal Writing (CLW) is a controlled natural language for legal texts. It has two parts: a set of writing rules (Part 1) and a controlled dictionary (Part 2). A third part gives the method for verifying that a restatement is accurate.

CLW is designed for four kinds of text:

- **Operative text.** Court rules, statutes, regulations, ordinances, orders, and agreements. Text that has legal effect.
- **Restatements.** Plain-language summaries of operative text, published alongside it or in place of it.
- **Annotations and notes.** Explanatory material that describes operative text without restating it.
- **Reference material.** Indexes, headnotes, tables, and finding aids.

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## Why a separate standard for legal writing?

Controlled languages for technical documentation share one governing assumption: that the writer may choose different words to express the same content, and should choose the simplest ones. That assumption does not hold in legal writing.

Three differences drive this standard.

**First, legal words are not interchangeable.** In technical writing, *begin*, *commence*, and *initiate* are synonyms, and a controlled language may select one and discard the rest. In legal writing, *vacate*, *reverse*, and *remand* describe three different dispositions, and *dismiss with prejudice* and *dismiss without prejudice* differ by the whole of their legal effect. A term of art is not a hard word that a writer chose over an easy one. It is a name for a rule. Replacing it deletes the rule.

**Second, the writer is often not the author.** A technical writer describes a machine, and the machine does not object to paraphrase. A legal writer frequently restates an authoritative text that the writer has no power to change. The measure of a restatement is not whether it reads well but whether it says the same thing. This standard therefore contains an apparatus that technical controlled languages do not need: rules of fidelity (Section 10) and a verification method (Part 3).

**Third, ambiguity is sometimes the content.** The purpose of a technical controlled language is to remove ambiguity. But a statute is sometimes ambiguous, because the legislature did not decide, could not agree, or wrote badly. A restatement that removes the ambiguity has substituted the writer's reading for the law. Under this standard, ambiguity present in the source is preserved and marked, not resolved (Rule 10.4). This is the deepest divergence between CLW and every controlled language written for technical documentation.

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## What CLW does not do

CLW does not:

- State the law, or make any text legally sufficient.
- Replace a citation manual. Use *The Bluebook*, the *ALWD Guide to Legal Citation*, or the citation rules of the governing court.
- Replace a drafting manual for a particular legislature, court, or agency. Where another authority governs, CLW yields to it.
- Regulate typography, page layout, numbering format, or file format.
- Teach English. A writer must already be fluent to write CLW correctly.
- Authorize the practice of law, or convert a restatement into advice.

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## Register tiers

Legal text is written for different readers. CLW recognizes four registers. The register determines how terms of art are handled, how long sentences may be, and what must be disclosed.

| Tier                     | Reader                                                      | Terms of art                                      | Sentence limit |
|--------------------------|-------------------------------------------------------------|---------------------------------------------------|----------------|
| <b>R1 — Operative</b>    | Courts, and parties bound by the text                       | Used without gloss. The text is the law.          | 30 words       |
| <b>R2 — Professional</b> | Lawyers, judges, clerks, law students                       | Preserved without gloss                           | 30 words       |
| <b>R3 — Public</b>       | Self-represented litigants, journalists, the general public | Preserved, and glossed at first use               | 25 words       |
| <b>R4 — Introductory</b> | Readers with no legal background                            | Preserved, and followed by a described equivalent | 20 words       |

A rule marked for one tier applies to that tier only. A rule that is not marked applies to every tier.

R4 text must carry a non-equivalence notice (Rule 7.2). R1, R2, and R3 text must not carry one, because at those tiers the text is required to be equivalent.

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## Order of precedence

Where another authority governs the text, CLW yields to it. Apply these in order, and follow the first that speaks to the question:

1. A governing statute, court rule, or code of construction.
2. The drafting manual or handbook of the body that publishes the text. Some of these are binding: the *Document Drafting Handbook* of the Office of the Federal Register is required by 44 U.S.C. chapter 15 and

1 CFR chapter I, and a document that does not comply is rejected. State administrative rule review commissions apply a comparable check.

3. The legislative drafting manual of the jurisdiction. Most states publish one.
4. The institution's own style guide.
5. This standard.

CLW is the residual authority, not the first one. Where CLW conflicts with anything above it, the higher authority controls, and the writer should record the conflict rather than resolve it silently.

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## Conformance and construction

Conformance to a drafting standard is not only a matter of style. State courts cite legislative drafting manuals to decide what statutes mean, using the conventions drafters actually follow to establish what the drafters meant. Courts have relied on manual conventions to determine whether a definition was exhaustive, whether a duty fell on one party or two, and what a cross-reference to a subunit encompassed.

Three consequences follow.

**Consistent conformance is evidence.** Where an institution adopts CLW and applies it consistently, the standard becomes evidence of what its drafters meant by a given construction.

**Inconsistent conformance is worse than none.** A standard adopted in name and applied unevenly supplies unreliable evidence of intent. An institution that cannot apply CLW consistently should not claim conformance to it.

**CLW does not displace a code of construction.** Every jurisdiction has its own rules of statutory construction, whether codified or judicial. This standard states how to write. It does not state how a court must read, and it makes no claim to override any jurisdiction's interpretive rules.

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## Reference documents

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- Association of Legal Writing Directors, *ALWD Guide to Legal Citation* (8th ed. 2024).
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- Office of the Legislative Counsel, U.S. House of Representatives, *House Legislative Counsel's Manual on Drafting Style* (HLC No. 104-1, 1995).
- Plain Writing Act of 2010, Pub. L. No. 111-274, 124 Stat. 2861. This Act covers agency documents addressed to the public. It does not cover regulations.
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- International Organization for Standardization, *Plain language — Part 1: Governing principles and guidelines* (ISO 24495-1:2023).
- Merriam-Webster's Collegiate Dictionary (11th ed.).
- Black's Law Dictionary (12th ed. 2024).
- Scalia, Antonin & Garner, Bryan A., *Reading Law: The Interpretation of Legal Texts* (2012).

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## Guide to the writing rules

Part 1 has 11 sections. Each section opens with a list of the rules it contains, and then gives an explanation and examples for each rule.

Examples appear as compliant and non-compliant pairs:

**Not CLW:** The applicant shall, within a period of not more than fourteen (14) days from and after the date of service hereof, file said response.

**CLW:** The applicant must file a response within 14 days after service.

General examples that do not illustrate such a pair appear without a label.

Most of the text of this standard is written in CLW at register R2.

# Part 1 — Writing rules

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## Section 1 — Words

### Summary of the rules

#### Which words may you use?

- **Rule 1.1** — Use words that are approved in the dictionary, preserved terms, or terms defined in the source.
- **Rule 1.2** — Use an approved word only as the part of speech given in the dictionary.
- **Rule 1.3** — Use an approved word only with the meaning given in the dictionary.

#### Words to avoid

- **Rule 1.4** — Use a verb, not a noun made from a verb.
- **Rule 1.5** — Do not use archaic or ceremonial legal words.
- **Rule 1.6** — Do not write new doublets or triplets.
- **Rule 1.7** — Do not use Latin except as a preserved term.
- **Rule 1.8** — Do not use a vague intensifier or a hedge that has no legal content.

#### Spelling

- **Rule 1.9** — Use American English spelling, unless the governing authority requires otherwise.

#### Which words may you use?

**Rule 1.1** — Use words that are approved in the dictionary, preserved terms, or terms defined in the source.

CLW has a controlled dictionary (Part 2) that gives the general-purpose words most often needed in legal writing. The dictionary is small on purpose. It does not attempt to list the vocabulary of law.

You may also use two classes of word that the dictionary does not list:

- **Preserved terms.** Terms of art, standards, tests, party names, court names, citations, and quoted text. Section 2 gives the categories and the rules for using them.
- **Terms defined in the source.** A word that the statute, rule, regulation, or agreement defines for itself. Use the defined term, and use it only within the scope of its definition (Rule 2.5).

Everything else must be an approved word.

*The dictionary controls only general vocabulary — the connective tissue of a sentence. It does not, and could not, control legal vocabulary. That is the work of Section 2.*

**Rule 1.2** — Use an approved word only as the part of speech given in the dictionary.

Each approved word in the dictionary has one part of speech, or in a few cases two. Use the word only as the part of speech given.

**Not CLW:** The court may impact the schedule.

**CLW:** The court may change the schedule.

*Impact* is a noun in the dictionary, not a verb.

**Not CLW:** The clerk must docket-stamp the filing.

**CLW:** The clerk must put a docket stamp on the filing.

**Rule 1.3** — Use an approved word only with the meaning given in the dictionary.

Many English words carry several meanings. In CLW, an approved word carries one.

**Not CLW:** The rule provides that a party must file a notice.

**CLW:** The rule states that a party must file a notice.

*Provide* has the approved meaning “to supply.” It does not mean “to state.” A rule does not supply anything.

**Not CLW:** The court found that the statute was ambiguous.

**CLW:** The court held that the statute was ambiguous.

*Find* has the approved meaning “to determine a question of fact.” A conclusion about the meaning of a statute is a holding, not a finding. This distinction is legally operative on appeal, because findings of fact and conclusions of law are reviewed under different standards.

**Words to avoid****Rule 1.4** — Use a verb, not a noun made from a verb.

A noun made from a verb — a nominalization — hides the action and usually forces a weak verb and a passive construction around it. Legal writing is unusually prone to this.

**Not CLW:** The petitioner must make application for an extension.

**CLW:** The petitioner must apply for an extension.

■ **Not CLW:** The court shall conduct a review of the record and make a determination.

■ **CLW:** The court must review the record and decide.

■ **Not CLW:** Service of the summons is a requirement before entry of a default.

■ **CLW:** A party must serve the summons before the clerk enters a default.

Common nominalizations and their verbs:

| Not CLW                 | CLW               |
|-------------------------|-------------------|
| give consideration to   | consider          |
| make a determination    | decide, determine |
| make application        | apply             |
| make payment            | pay               |
| conduct an examination  | examine           |
| effect a transfer       | transfer          |
| provide notification    | notify            |
| is in violation of      | violates          |
| is in compliance with   | complies with     |
| take into consideration | consider          |
| have knowledge of       | know              |
| render a decision       | decide            |

**Exception.** Some nominalizations are themselves terms of art and must be preserved: *service, joinder, removal, remand, discovery, consideration* (in contract), *conversion, waiver, forfeiture, preclusion*. Rule 2.1 governs these. The test is whether the noun names a legal concept or merely restates a verb.

**Rule 1.5** — Do not use archaic or ceremonial legal words.

These words survive by inheritance, not by function. They add length, they exclude readers, and the *here-*, *there-*, and *where-* compounds are a frequent source of ambiguity, because the reader must guess what they point to.

Do not use:

*aforesaid, aforementioned, hereafter* (meaning “in this document”), *hereby, herein, hereinabove, hereinafter, hereinbefore, hereof, hereto, heretofore, hereunder, herewith, said* (as a pointing adjective), *same* (as a pronoun), *thence, thenceforth, thereafter* (meaning “in that document”), *thereby, therefor, therefrom,*

*therein, thereof, thereon, thereto, theretofore, thereunder, therewith, to wit, whatsoever, whensoever, whereas* (in recitals), *whereby, wherefore, wherein, whereof, whereupon, witnesseth, wheresoever*.

**Not CLW:** The party of the first part hereby agrees to indemnify the party of the second part against any and all claims arising hereunder.

**CLW:** The seller must indemnify the buyer against any claim that arises under this agreement.

**Not CLW:** Said motion shall be filed within the time period specified hereinabove.

**CLW:** The party must file the motion within the period stated in section 4(a).

Replace a *here-* or *there-* compound with the specific thing it points to. If you cannot identify the thing, the original text was ambiguous, and Rule 10.4 applies.

Annex B gives a full replacement table.

**Exception.** *These words may appear in quoted text (Rule 2.7). Do not modernize a quotation.*

### Rule 1.6 — Do not write new doublets or triplets.

A doublet is a pair of words joined by *and* or *or* where one word would do: *null and void, cease and desist, free and clear, each and every, full and complete, give, devise, and bequeath*. Most are the residue of Norman French and Old English being run in harness. They add no meaning and invite a court to hold that the second word must mean something the first does not.

**Not CLW:** The order is null and void and of no force or effect.

**CLW:** The order has no effect.

**Not CLW:** Each and every party must sign.

**CLW:** Each party must sign.

#### Two exceptions.

1. **Terms of art.** Some doublets have become single terms of art with settled meaning: *aid and abet, pain and suffering, cruel and unusual, full faith and credit, last will and testament*. Rule 2.1 preserves these. Do not split them.
2. **Quoted or restated text.** Where the source uses a doublet, a restatement preserves it. Rule 10.3 forbids dropping content, and a court may have given each word separate work to do.

This is a rule of drafting. When you write new operative text, write one word.

### Rule 1.7 — Do not use Latin except as a preserved term.

Distinguish two kinds of Latin.

**Latin terms of art** name legal concepts that have no exact English equivalent. Preserve them: *habeas corpus*, *certiorari*, *mandamus*, *res judicata*, *stare decisis*, *mens rea*, *actus reus*, *prima facie*, *ex parte*, *in camera*, *sua sponte*, *voir dire*, *amicus curiae*, *in rem*, *in personam*, *guardian ad litem*, *nunc pro tunc*, *forum non conveniens*, *quantum meruit*, *respondeat superior*.

At R3, gloss a Latin term of art at first use. At R4, follow it with a described equivalent.

- **R2:** The court acted *sua sponte*.
- **R3:** The court acted *sua sponte* — on its own, without a request from either party.
- **R4:** The court acted on its own. Neither party asked it to. Lawyers call this acting *sua sponte*.

**Latin that is merely Latin** has an exact English equivalent and no term-of-art status. Do not use it.

| Not CLW      | CLW                                   |
|--------------|---------------------------------------|
| inter alia   | among others                          |
| e.g.         | for example                           |
| i.e.         | that is                               |
| etc.         | and so on, or rewrite                 |
| viz.         | namely                                |
| supra, infra | a full citation                       |
| arguendo     | for the sake of argument              |
| ab initio    | from the beginning                    |
| pro tanto    | to that extent                        |
| seriatim     | one after another                     |
| sic          | preserve — it is a signal, not a word |

■ **Not CLW:** The statute governs all filings, motions, notices, etc.

■ **CLW:** The statute governs filings, motions, and notices.

Never use *etc.* in operative text. A list in operative text is either closed, or it is opened by a word that opens it (*including*, *such as*). *Etc.* leaves the reader to guess the class, and a court to construe it.

**Rule 1.8** — Do not use a vague intensifier or a hedge that has no legal content.

Do not use: *clearly*, *obviously*, *plainly*, *undoubtedly*, *certainly*, *of course*, *needless to say*, *it goes without saying*, *very*, *extremely*, *quite*, *rather*, *somewhat*, *arguably*, *in a sense*, *essentially*, *basically*, *generally speaking*, *as such*.

These words assert a conclusion instead of supporting it, and they signal weakness rather than strength.

■ **Not CLW:** The statute clearly does not apply to this situation.

■ **CLW:** The statute applies only to filings made after January 1, 2026. This filing was made in 2024.

**Do not confuse an intensifier with a legal standard.** *Clear and convincing, clearly erroneous, plain error, manifest injustice, reasonable, material, substantial, and willful* are legal standards with defined content. They are preserved terms (Rule 2.2). Never soften, strengthen, or paraphrase one.

■ **Not CLW:** The appellate court will reverse only if the finding was very wrong.

■ **CLW:** The appellate court will reverse only if the finding was clearly erroneous.

## Spelling

**Rule 1.9** — Use American English spelling, unless the governing authority requires otherwise.

Use the spelling in *Merriam-Webster's Collegiate Dictionary*. Where a court, agency, or contracting party requires a different convention, follow it.

Do not change the spelling in quoted text, including a quotation from an older source. Do not add *[sic]* to a spelling that was standard when the source was written.

Conventional legal spellings that Merriam-Webster lists as variants are permitted where they are the settled form in the relevant practice: *judgment* (not *judgement*), *pleaded* (not *pled*, in formal text).

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## Section 2 — Terms of art and defined terms

### Summary of the rules

#### Preserved terms

- **Rule 2.1** — You may use any word that falls into a preserved-term category.
- **Rule 2.2** — Never paraphrase a legal standard, test, or threshold.
- **Rule 2.3** — Use the preserved term that the source uses.

#### Defined terms

- **Rule 2.4** — Use a term defined in the source exactly as the source spells it.
- **Rule 2.5** — Do not use a defined term outside the scope of its definition.
- **Rule 2.6** — Do not define a term that the source does not define.

#### Quoted text

- **Rule 2.7** — Do not change quoted text.

## Glossing

- **Rule 2.8** — At R3 and R4, gloss a preserved term at first use.

## Closing and opening a definition

- **Rule 2.9** — Use “means” to close a definition and “includes” to open one.

## Preserved terms

**Rule 2.1** — You may use any word that falls into a preserved-term category.

A preserved term is a word or phrase that names a legal concept, party, instrument, court, standard, or authority. Preserved terms are outside the control of the dictionary. You may use them at every register.

The dictionary does not list preserved terms, because there are too many and because they differ by jurisdiction and practice area. This rule gives categories instead. A word is a preserved term if it belongs to one or more of these twenty categories.

**1. Terms of art defined by case law** Concepts whose content comes from judicial decisions rather than from a statutory definition. *proximate cause, consideration, standing, ripeness, mootness, scienter, unconscionability, piercing the corporate veil, fair use, likelihood of confusion, qualified immunity, harmless error, law of the case*

**2. Standards of review and burdens of proof** *de novo, clearly erroneous, abuse of discretion, substantial evidence, arbitrary and capricious, plain error, preponderance of the evidence, clear and convincing evidence, beyond a reasonable doubt, rational basis, intermediate scrutiny, strict scrutiny*

**3. Legal tests and thresholds** Words that a court has invested with a standard. *good cause, excusable neglect, extraordinary circumstances, substantially impair, reasonable, material, willful, knowing, bad faith, undue burden, irreparable harm, likelihood of success on the merits, meaningful opportunity to be heard*

**4. Procedural devices and filings** *complaint, answer, counterclaim, cross-claim, demurrer, motion in limine, motion to dismiss, motion for summary judgment, interpleader, intervention, class certification, writ of mandamus, writ of habeas corpus, petition for certiorari, notice of appeal, interlocutory appeal, removal, remand*

**5. Dispositions and remedies** *affirm, reverse, vacate, remand, dismiss with prejudice, dismiss without prejudice, preliminary injunction, permanent injunction, temporary restraining order, declaratory judgment, specific performance, rescission, reformation, compensatory damages, consequential damages, liquidated damages, punitive damages, nominal damages, restitution, disgorgement, attorney's fees*

**6. Parties, roles, and offices** *plaintiff, defendant, appellant, appellee, petitioner, respondent, relator, intervenor, amicus curiae, guardian ad litem, next friend, personal representative, executor, trustee, receiver, special master, magistrate judge, clerk of court, United States Trustee*

- 7. Courts, tribunals, agencies, and offices** Proper nouns naming an adjudicative or regulatory body. *Supreme Court of the United States, United States Court of Appeals for the Sixth Circuit, Michigan Court of Appeals, Judicial Conference of the United States, Securities and Exchange Commission, Administrative Law Judge*
- 8. Citations, docket identifiers, and case names** *Fed. R. Civ. P. 12(b)(6), MCL 600.2591, 28 U.S.C. § 1291, 17 C.F.R. § 240.10b-5, No. 24-1157, Marbury v. Madison*
- 9. Quoted text** Any text reproduced from the source. Rule 2.7 governs.
- 10. Latin terms of art** Rule 1.7 gives the list and the distinction.
- 11. Instruments and documents** *deed, quitclaim deed, warranty deed, promissory note, mortgage, security agreement, financing statement, articles of incorporation, operating agreement, bylaws, will, codicil, trust instrument, power of attorney, indictment, information, subpoena, subpoena duces tecum*
- 12. Jurisdiction, venue, and choice of law** *subject-matter jurisdiction, personal jurisdiction, diversity jurisdiction, federal question, supplemental jurisdiction, minimum contacts, long-arm statute, venue, forum non conveniens, choice of law*
- 13. Time, limitations, and computation** *statute of limitations, statute of repose, tolling, equitable tolling, accrual, laches, nunc pro tunc, relation back, continuing violation*
- 14. Sanctions, preclusion, and consequences** *civil contempt, criminal contempt, default, default judgment, dismissal for want of prosecution, Rule 11 sanctions, waiver, forfeiture, estoppel, judicial estoppel, collateral estoppel, issue preclusion, claim preclusion, res judicata*
- 15. Evidence** *hearsay, exception to the hearsay rule, privilege, attorney-client privilege, work product, relevance, authentication, best evidence, foundation, offer of proof, judicial notice, spoliation*
- 16. Criminal law and procedure** *mens rea, actus reus, indictment, arraignment, plea, nolo contendere, allocution, Miranda warning, probable cause, reasonable suspicion, exclusionary rule, fruit of the poisonous tree, Brady material*
- 17. Administrative and regulatory** *notice-and-comment rulemaking, final agency action, exhaustion of administrative remedies, interpretive rule, legislative rule, guidance document, Administrative Procedure Act, Federal Register, Code of Federal Regulations*
- 18. Transactional and commercial** *offer, acceptance, consideration, condition precedent, condition subsequent, covenant, representation, warranty, indemnify, hold harmless, force majeure, assignment, novation, accord and satisfaction, perfection, priority, secured party, debtor*
- 19. Property, trusts, and estates** *fee simple, life estate, remainder, reversion, easement, covenant running with the land, adverse possession, joint tenancy, tenancy in common, tenancy by the entirety, testate, intestate, per stirpes, per capita, spendthrift trust, rule against perpetuities*
- 20. Numbers, dates, monetary amounts, and units** *14 days, \$50,000, 5 percent, January 1, 2026, three-judge panel*

*These categories give examples, not a complete list. A word may belong to more than one category. Where a word is a preserved term in one context and ordinary English in another, the context controls.*

**Example of context-dependence.** *Discovery* is a preserved term in category 4. It is an ordinary noun elsewhere.

- **CLW:** A party must respond to a discovery request within 30 days. (*Discovery* is a preserved term.)
- **Not CLW:** The discovery of the error occurred after judgment.
- **CLW:** The party found the error after judgment.

## **Rule 2.2** — Never paraphrase a legal standard, test, or threshold.

This is the central prohibition of the standard. It has no exception at any register.

A legal standard is not a description that a writer may restate in other words. It is a name for a body of law. *Good cause* means what courts have held it to mean. *Substantially impair* means what courts have held it to mean. A writer who replaces one with an ordinary-language paraphrase has not simplified the text. The writer has changed the governing law and hidden the change.

- **Not CLW:** The court may suspend the rule if it has a good reason.
- **CLW:** The court may suspend the rule for good cause.
- **Not CLW:** The judge's decision stands unless it was really unreasonable.
- **CLW:** The appellate court reviews the decision for abuse of discretion.
- **Not CLW:** The agency's rule is upheld if it makes sense.
- **CLW:** The court sets aside the rule only if it is arbitrary and capricious.

At R4, a described equivalent may follow the standard. It must not replace it.

- **R4:** The court may suspend the rule for *good cause*. "Good cause" is a legal standard. Courts decide case by case what counts as good cause, so this summary cannot tell you whether a particular reason qualifies.

## **Rule 2.3** — Use the preserved term that the source uses.

Where the source instrument selects a term, the restatement uses that term. Do not substitute a synonym, even a term of art that means the same thing in general usage.

■ **Source:** “...the district court shall remand the case...”

■ **Not CLW:** The district court must send the case back.

■ **CLW:** The district court must remand the case.

Different bodies of law use different names for similar things. *Petitioner* and *plaintiff* are not interchangeable. *Vacate* and *set aside* are not interchangeable in every context. Follow the source.

## Defined terms

**Rule 2.4** — Use a term defined in the source exactly as the source spells it.

When a statute, rule, regulation, or agreement defines a term, that definition displaces ordinary meaning within the instrument’s scope. Use the defined term with its exact capitalization, hyphenation, and number.

■ **Source:** “‘Covered Entity’ means a health plan, a health care clearinghouse, or a health care provider...”

■ **Not CLW:** A covered organization must give notice.

■ **CLW:** A Covered Entity must give notice.

Where the source capitalizes a defined term, capitalize it. Where the source does not, do not add capitals. Added capitals suggest a definition that does not exist.

**Rule 2.5** — Do not use a defined term outside the scope of its definition.

A definition has a scope: this section, this subchapter, this title, this agreement. Outside that scope, the word reverts to its ordinary meaning or to a different definition.

■ **Not CLW:** Under the Act, an *employee* has 180 days to file. The company’s employees also handle intake.

■ **CLW:** Under the Act, an *employee* has 180 days to file. The company’s staff also handle intake.

The second sentence in the first example uses *employee* in its ordinary sense within a paragraph that has just given it a statutory sense. Use a different word.

Where the source defines a term differently in different places, say so and cite both.

**Rule 2.6** — Do not define a term that the source does not define.

A restatement must not create a definition. A writer who defines *notice* to mean “written notice sent by first-class mail” has amended the rule.

**Not CLW:** The party must give notice. In this summary, “notice” means a written document delivered to the opposing party.

**CLW:** The party must give notice. The rule does not state what form the notice must take.

The second form states the gap instead of filling it. Rule 10.4 requires this.

Labels that a restatement adopts for its own convenience — *this summary, the Rules, the Act* — are not definitions of legal terms and are permitted. Introduce them in a parenthetical at first use.

**CLW:** The Federal Rules of Appellate Procedure (the Rules) apply in every court of appeals.

## Quoted text

**Rule 2.7** — Do not change quoted text.

Quoted text is preserved exactly: spelling, capitalization, punctuation, archaic words, gendered language, and errors.

- Do not modernize. Do not apply Rule 1.5 or Rule 1.9 to a quotation.
- Do not apply Rule 3.2 to a quotation. A quoted *shall* stays *shall*.
- Do not apply Rule 9.1 to a quotation. A quotation without a serial comma keeps its punctuation, and the absence may be legally significant.
- Mark an omission with an ellipsis and an addition with brackets, per the governing citation manual.
- Use *[sic]* only for an error in the original that a reader would otherwise attribute to the quoting writer. Do not use it to mark an archaism or a dated spelling.

For word count, a quoted passage counts as one word (Rule 9.7).

## Glossing

**Rule 2.8** — At R3 and R4, gloss a preserved term at first use.

**R3.** Give the term, then a short gloss set off by a comma, a dash, or parentheses. The gloss describes. It does not replace.

**R3:** The party may move for summary judgment — a ruling that the case can be decided without a trial because the important facts are not in dispute.

**R4.** Give the term, then a described equivalent in a separate sentence.

**R4:** The party may ask for *summary judgment*. This means asking the judge to decide the case without a trial, on the ground that the two sides agree about what happened and disagree only about the law.

Gloss a term once per document, at its first use. Do not gloss it again. Repeated glossing makes the text longer without making it clearer.

A gloss is explanatory writing (Section 7), not operative text, and is subject to Rule 10.5. A gloss must not apply the term to facts or predict a result.

**At every register, give notice that a term is specialized.** Glossing is required at R3 and R4 only. The duty to signal is not. A word may not carry its ordinary meaning, because it is a term of art or because the source defines it. Say so, at whatever register you are writing. At R1 and R2 a signal is enough; the reader can look the term up. What the reader must not do is read a specialized word as an ordinary one because nothing marked it.

This matters most for words that look ordinary and are not: *party, service, motion, finding, material, person*. Refer to GR-11.

## Closing and opening a definition

**Rule 2.9** — Use “means” to close a definition and “includes” to open one.

*Means* states that the definition is complete. Nothing outside the list qualifies. *Includes* states that the list is illustrative and other things may qualify.

The distinction is not stylistic. A Wisconsin appellate court decided the reach of a criminal statute on it. The court held a statutory definition exhaustive, because the legislature’s own drafting manual directed drafters to use *means* for a complete definition.

**CLW:** “Party” means a person named in the complaint. (Nobody else is a party.)

**CLW:** The record includes the transcript. (Other things may also be in the record.)

Do not write *includes but is not limited to*. In most jurisdictions it says no more than *includes*. But do not convert one form to the other in a restatement — some jurisdictions treat *includes* as exhaustive, and the choice belongs to the source.

Do not mix the two in one definition. *Means and includes* is a contradiction, and a court must resolve it.

**In a restatement, preserve the source’s choice.** It determines whether the class is closed, which is often the whole question. Refer to Rule 10.8.

## Section 3 — Verbs, voice, and modality

### Summary of the rules

#### Modal verbs

- **Rule 3.1** — Use only the normative operators in the approved set.
- **Rule 3.2** — Do not use “shall” in text that you draft.
- **Rule 3.3** — Match the negation to the operator.
- **Rule 3.4** — Name the person who bears the duty.

#### Voice

- **Rule 3.5** — Use the active voice.
- **Rule 3.6** — Use the passive voice only where the source does not name an actor.

#### Tense and form

- **Rule 3.7** — Use a verb to express an action.
- **Rule 3.8** — Use the simple present tense for operative text.

#### Modal verbs

**Rule 3.1** — Use only the normative operators in the approved set.

A normative operator is the word that tells the reader whether the text imposes a duty, grants a permission, confers a right, or states a consequence. It is the load-bearing word in every operative sentence. English offers a dozen candidates with overlapping senses. CLW approves seven and no others.

| Operator              | Effect                           | Test                                                              |
|-----------------------|----------------------------------|-------------------------------------------------------------------|
| <b>must</b>           | Imposes a duty                   | The actor is required to act. Failure is a violation.             |
| <b>must not</b>       | Imposes a prohibition            | The actor is required not to act. Action is a violation.          |
| <b>may</b>            | Confers discretion or permission | The actor is free to act or not to act. Neither is a violation.   |
| <b>may not</b>        | Withholds authority              | The actor has no power to act. Action is void or a violation.     |
| <b>is entitled to</b> | Confers a right                  | The actor may demand the thing, and another party must supply it. |
| <b>need not</b>       | Negates a duty                   | The actor is not required to act, but may.                        |
| <b>will</b>           | States an automatic consequence  | The stated result follows without anyone exercising judgment.     |

Do not use: *shall*, *shall not*, *should* (in operative text), *ought to*, *is required to*, *is obligated to*, *is directed to*, *it is the duty of*, *no person shall*, *is permitted to*, *has the right to*, *can*, *might*, *could*, *would*.

### Examples.

■ **Not CLW:** The clerk is required to enter the judgment.

■ **CLW:** The clerk must enter the judgment.

■ **Not CLW:** No party shall file a brief exceeding 30 pages.

■ **CLW:** A party must not file a brief longer than 30 pages.

■ **Not CLW:** The court is permitted to extend the deadline.

■ **CLW:** The court may extend the deadline.

**“May not” is prohibitive.** In ordinary English, *may not* can mean “might not.” In CLW it never does. It withholds authority.

■ **CLW:** The court may not suspend a time limit that a statute imposes.

To express the possibility that something might not happen, do not use a normative operator at all. Use *it is possible that*, or restate.

**“Will” is not a duty.** *Will* states what follows automatically, without anyone choosing.

■ **CLW:** If a party does not respond within 21 days, the claim is waived.

■ **CLW:** The clerk must enter a default. The court will then set a hearing.

■ **Not CLW:** The party will file a response within 14 days. (This states a duty. Use *must*.)

**“Should” is not operative.** *Should* has no settled deontic force. Do not use it at any register; in operative or in explanatory text. Where a source uses *should*, do not map it to an operator. State that the source uses a non-mandatory word. Quote the source where its exact word matters (Rule 2.7). Rule 10.7 governs the mapping, and Rule 7.3 forbids the writer’s own *should*, which is advice.

### Rule 3.2 — Do not use “shall” in text that you draft.

*Shall* is the most litigated word in the English language. Courts have construed it as mandatory, as directory, as a simple future, and as surplusage, sometimes within the same statute. It carries no reliable meaning, and a drafter who uses it has not decided what the text requires.

Every use of *shall* in new drafting resolves to one of the approved operators:

| <b><i>Shall</i> is doing this work</b> | <b>Write</b> |
|----------------------------------------|--------------|
| Imposing a duty                        | must         |

| <b>Shall is doing this work</b>                         | <b>Write</b>                |
|---------------------------------------------------------|-----------------------------|
| Imposing a prohibition ( <i>shall not</i> )             | must not                    |
| Granting permission                                     | may                         |
| Withholding authority ( <i>shall not</i> )              | may not                     |
| Stating a future consequence                            | will, or the simple present |
| Stating an amount, a status, or what is treated as what | the simple present          |
| Nothing at all                                          | delete                      |

■ **Not CLW:** The petition shall contain a statement of the issues. The court shall have jurisdiction.

■ **CLW:** The petition must contain a statement of the issues. The court has jurisdiction.

**In a restatement, “shall” in the source is different.** Rule 10.7 governs. In brief:

- If you quote the source, keep *shall* (Rule 2.7).
- If you restate the source, map *shall* to the operator that the source’s construction requires, and record the mapping in the proposition ledger (Part 3).
- If the construction is contested, do not choose. State that the source uses *shall* and cite the authority on both sides. Rule 10.4 requires this.

■ **CLW:** The statute states that the agency “shall” publish the notice. Courts have divided on whether this word imposes a duty or states a preference. Refer to [citation] and [citation].

**This rule yields to a governing drafting manual.** Most state legislatures still teach *shall* as the mandatory operator and *may* as the permissive one, and a drafter in one of those offices is required to follow the manual. Where a drafting manual, court rule, or agency directive governs, that authority controls. Refer to the order of precedence in the General introduction.

Rule 3.2 states what to write where the writer is free to choose. It does not claim to displace a drafting office.

### **Rule 3.3 — Match the negation to the operator.**

English negation attaches to different parts of a modal sentence, and the four negative forms are not interchangeable. Choosing the wrong one inverts the legal effect.

| <b>Form</b>     | <b>Means</b>                       | <b>Does not mean</b>              |
|-----------------|------------------------------------|-----------------------------------|
| <b>must not</b> | The actor is forbidden to act.     | The actor is not required to act. |
| <b>need not</b> | The actor is not required to act.  | The actor is forbidden to act.    |
| <b>may not</b>  | The actor has no authority to act. | The actor might not act.          |

| Form                      | Means                               | Does not mean                         |
|---------------------------|-------------------------------------|---------------------------------------|
| <b>is not entitled to</b> | The actor may not demand the thing. | The actor is forbidden to receive it. |

The most common error is writing *must not* where the source means *need not*.

■ **Source:** “A party is not required to attach the exhibits to the motion.”

■ **Not CLW:** A party must not attach the exhibits to the motion.

■ **CLW:** A party need not attach the exhibits to the motion.

The incorrect version converts an option into a prohibition. This is a fidelity failure under Rule 10.2 as well as a Section 3 failure.

**Do not write a double negative.** Legal text is dense enough without one.

■ **Not CLW:** No party may fail to serve the notice.

■ **CLW:** Each party must serve the notice.

■ **Not CLW:** The court may not decline to hear the motion unless no good cause is shown.

■ **CLW:** The court must hear the motion. The court may decline only for good cause.

### Rule 3.4 — Name the person who bears the duty.

A duty needs a bearer. Operative text that imposes a duty without naming who owes it is defective, and a restatement that drops the bearer has changed the rule.

■ **Not CLW:** The notice must be filed within 14 days.

■ **CLW:** The appellant must file the notice within 14 days.

■ **Not CLW:** It is required that the record be transmitted.

■ **CLW:** The clerk of the district court must transmit the record.

**Where the source does not name a bearer,** do not invent one. Rule 3.6 and Rule 10.6 apply. State the requirement in the source’s own terms and note the gap.

■ **CLW:** The rule states that notice must be given. It does not state who must give the notice.

**Do not attach a duty to an inanimate thing.**

■ **Not CLW:** The motion must include a certificate of service.

■ **CLW:** A party who files a motion must include a certificate of service.

The first form describes a property of a document. The second imposes a duty on a person, which is what the rule does. Where the source itself writes in the first form, Rule 10.6 controls: preserve the source's construction, and do not supply the actor.

## Voice

### Rule 3.5 — Use the active voice.

The active voice names the actor, puts the actor first, and shortens the sentence.

- **Not CLW:** A response may be filed by any party affected by the order.
- **CLW:** Any party affected by the order may file a response.
- **Not CLW:** The record was reviewed by the panel and the judgment was affirmed.
- **CLW:** The panel reviewed the record and affirmed the judgment.

### Rule 3.6 — Use the passive voice only where the source does not name an actor.

This rule is a departure from every controlled language written for technical documentation. Those standards permit the passive only where the actor is genuinely unknown. CLW permits it in a second case, which is far more common in law: where the source *deliberately does not say* who acts.

Legislatures and rulemakers frequently leave the actor unstated. Sometimes this is sloppiness. Sometimes it is a compromise, or a delegation, or a deliberate decision that any of several parties may perform the act. A restatement that converts an agentless passive into an active sentence must name someone, and naming someone the source did not name is an amendment.

- **Source:** “The record must be transmitted within 30 days.”
- **Not CLW:** The clerk must transmit the record within 30 days. (The source does not say who transmits it. This adds content.)
- **CLW:** The record must be transmitted within 30 days. The rule does not state who must transmit it.

**Where the actor is identifiable from elsewhere in the instrument**, name the actor and cite the provision that supplies it.

- **CLW:** The record must be transmitted within 30 days. Rule 11(b) assigns this duty to the clerk of the district court.

**Where you are drafting new text**, Rule 3.4 applies without exception. Name the actor.

An agentless passive that a restatement preserves must be flagged in the proposition ledger as an unresolved agent (Part 3).

**This rule has a cost, and the cost is real.** Comprehension research on jury instructions found two linguistic features that predict how well a reader understands legal text. One is the passive verb. The more passives, the worse the comprehension. Rule 3.5 exists because of that finding. Rule 3.6 works against it.

The conflict is genuine and this standard resolves it in favour of fidelity. Supplying an actor the source does not name is an amendment, and an amendment is a worse error than a hard sentence.

But do not simply leave the reader with the passive. Naming the gap recovers most of the loss:

**Not CLW:** The record must be transmitted within 30 days. (Accurate, and the reader is left wondering whose job it is.)

**CLW:** The record must be transmitted within 30 days. The rule does not state who must transmit it.

The second form is as faithful as the first and tells the reader that the missing actor is missing from the law, not from the summary. At R3 and R4 this sentence is required.

## Tense and form

### Rule 3.7 — Use a verb to express an action.

Express an action with a verb, not with a noun, an adjective, or a prepositional phrase. Rule 1.4 gives the nominalization cases. This rule covers the rest.

**Not CLW:** The party is under an obligation to respond.

**CLW:** The party must respond.

**Not CLW:** Compliance with subsection (b) is a precondition to relief.

**CLW:** A party must comply with subsection (b) before the court may grant relief.

**Not CLW:** The court is in agreement with the magistrate judge.

**CLW:** The court agrees with the magistrate judge.

### Rule 3.8 — Use the simple present tense for operative text.

Operative text speaks continuously. A rule is not something that happened; it is something that is true whenever it is read. Write it in the simple present.

**Not CLW:** This rule shall apply to any appeal that shall be filed after the effective date.

**CLW:** This rule applies to an appeal filed after the effective date.

■ **Not CLW:** A person who will have failed to appear will be subject to sanctions.

■ **CLW:** A person who does not appear is subject to sanctions.

Use the past tense only for events that actually occurred: procedural history, findings, and the disposition of a decided case.

■ **CLW:** The district court granted summary judgment. The panel reversed.

Use the future tense only for the *will* operator (Rule 3.1) and for a stated effective date.

■ **CLW:** This amendment takes effect on December 1, 2026.

## Section 4 — Sentences

### Summary of the rules

#### Length and structure

- **Rule 4.1** — Write short sentences.
- **Rule 4.2** — Put one proposition in each sentence.
- **Rule 4.3** — Do not omit words, and do not use contractions.

#### Lists

- **Rule 4.4** — Use a vertical list for a sentence that carries more than three items.

#### Connection

- **Rule 4.5** — Connect related sentences with a connecting word.
- **Rule 4.6** — Keep the subject and the verb together, and near the front.

### Length and structure

**Rule 4.1** — Write short sentences.

The limit depends on the register.

| Register          | Limit    |
|-------------------|----------|
| R1 — Operative    | 30 words |
| R2 — Professional | 30 words |
| R3 — Public       | 25 words |
| R4 — Introductory | 20 words |

A note, an annotation, or a gloss may run five words longer than the limit for its register.

The limits are higher than a technical standard would set, and deliberately so. A legal sentence often has to carry a condition, an actor, an operator, an object, and a citation. Cutting below these limits forces a writer to split one legal proposition across two sentences. That is a worse fidelity problem than a long sentence.

Rule 9.7 gives the counting method.

**Where the cap would split a conjunctive series, use a vertical list (Rule 4.4). Do not split the series into separate sentences.** A series joined by *and* states one course; four sentences each beginning *the court may* state four independent options. The connector is content, and Rule 10.8 forbids losing it. Rule 4.4 puts the connector in the introductory text, where it governs every item and costs no words in any single sentence.

**Not CLW:** If the court determines, after notice to all parties and an opportunity to be heard, that the moving party has shown good cause and that no other party will be prejudiced, the court may in its discretion extend the deadline for a period not exceeding 30 days. (49 words)

**CLW:** The court may extend the deadline by up to 30 days. Before it does so, the court must give notice to all parties and an opportunity to be heard. The court must also find good cause and no prejudice to any other party. (17, 16, 15 words)

#### **Rule 4.2 — Put one proposition in each sentence.**

A proposition is a single legal statement: one duty, one permission, one condition, one consequence, one definition. Where a sentence carries two, split it.

**Not CLW:** The appellant must file the brief within 40 days and the appellee must respond within 30 days after service of the appellant's brief.

**CLW:** The appellant must file the brief within 40 days. The appellee must respond within 30 days after the appellant serves the brief.

This rule does more work in legal writing than in technical writing, because the proposition is also the unit of verification. Part 3 requires a writer to decompose the source into atomic propositions and map each one to a sentence in the restatement. A sentence that carries two propositions cannot be mapped cleanly, and a proposition split across two sentences is easy to lose.

**Exception.** Keep a condition and its consequence in one sentence where separating them would leave either half incomplete.

**CLW:** If the party does not respond within 21 days, the court may enter a default.

#### **Rule 4.3 — Do not omit words, and do not use contractions.**

Write every sentence in full.

**Do not omit the actor.**

■ **Not CLW:** If served by mail, add three days.

■ **CLW:** If a party serves the document by mail, that party must add three days.

**Do not omit the verb.**

■ **Not CLW:** Motion denied. Costs to appellee.

■ **CLW:** The court denies the motion. The appellee recovers costs.

(Docket entries and orders may use the shortened form where the court's own convention requires it. Rule 2.7 preserves quoted orders.)

**Do not omit the article.** In law an omitted article changes number and scope.

■ **Not CLW:** Party must serve notice on opposing counsel.

■ **CLW:** A party must serve the notice on opposing counsel.

**Do not use contractions.** Write *do not*, *cannot*, *is not*, *does not*.**Do not use an ampersand** except in a citation, a case name, or a party name where the source uses one.**Lists**

**Rule 4.4** — Use a vertical list for a sentence that carries more than three items.

Legal text carries lists constantly: elements, factors, exceptions, grounds, required contents. A run-in list of more than three items is hard to read and, worse, makes the scope of a modifier hard to see.

When you write a vertical list:

- Put a colon at the end of the introductory text.
- Give each item a designation: a number, a letter, a dash, or a bullet.
- Make every item grammatically parallel with the introductory text and with every other item.
- Begin each item with a capital letter.
- Do not end an item with a comma or a semicolon.
- End an item with a period only if the item is a full sentence.
- End the last item with a period.
- State the connector — *and*, *or*, *and both*, *or both* — in the introductory text, not between the last two items.

The last requirement is specific to legal writing. In ordinary prose, a writer puts *and* or *or* before the final item. In a legal list, that placement leaves the reader to infer whether the connector governs only the last item or the whole list. State it once, at the top, where it governs everything.

**Not CLW:** The motion must state the relief sought, the grounds for the relief, the authority relied on, and the date of the order challenged.

**CLW:** The motion must state each of the following:

- The relief sought
- The grounds for the relief
- The authority relied on
- The date of the order challenged.

**CLW:** The court may dismiss the appeal on any of the following grounds:

- The appellant did not file a timely notice of appeal
- The order is not final
- The court lacks jurisdiction.

*Each of the following* signals a conjunctive list. *Any of the following* signals a disjunctive one. Never leave the reader to work it out.

**Do not mix a list of conditions with a list of consequences.** Each list carries one kind of item.

**Do not renumber a list that a restatement takes from a source.** Rule 5.6 controls.

## Connection

**Rule 4.5** — Connect related sentences with a connecting word.

Splitting a long sentence produces short sentences that are hard to follow unless the writer restores the logical link. Use a connecting word.

The approved connectives are: *and, but, or, then, if, unless, until, because, after, before, while, however, therefore, as a result, at the same time, in that case, for this reason.*

**CLW:** The court must give notice to all parties. It must then hold a hearing.

**CLW:** The rule requires a certificate of service. However, the clerk may accept a filing without one and require the certificate later.

**Do not begin an operative sentence with a connective at R1.** In R1 text, a sentence-initial connective can make the scope of a provision ambiguous. Restructure instead.

**Not CLW (R1):** Therefore, the party must file within 14 days.

**CLW (R1):** The party must file within 14 days.

The prohibition on sentence-initial connectives applies to R1 only. At R2, R3, and R4 they are permitted and often necessary.

**Rule 4.6** — Keep the subject and the verb together, and near the front.

The single most damaging habit in legal prose is the interrupted subject: a subject, then a long qualifying clause, then finally the verb. The reader must hold the subject in memory across the whole interruption.

**Not CLW:** A party who, having been served with a summons and complaint under Rule 4 and having failed to answer within the time allowed, seeks relief from a default must show good cause.

**CLW:** A party may seek relief from a default only for good cause. This rule applies to a party who was served under Rule 4 and did not answer in time.

Put the qualification in its own sentence, or move it to the front of the sentence as a condition (Rule 5.1).

## Section 5 — Conditions, exceptions, and cross-references

### Summary of the rules

#### Conditions

- **Rule 5.1** — Put the condition before the consequence.
- **Rule 5.2** — Put one condition in each sentence.

#### Exceptions

- **Rule 5.3** — State an exception in its own sentence.
- **Rule 5.4** — Do not use a proviso.

#### Cross-references

- **Rule 5.5** — Cite the specific provision.
- **Rule 5.6** — Do not change the source's structure or designations.

#### Incorporation

- **Rule 5.7** — Incorporate external material only as the governing regime allows.

### Conditions

**Rule 5.1** — Put the condition before the consequence.

A reader who meets the consequence first has to hold it in memory while working out whether it applies. Put the condition first, so the reader can stop reading if the condition does not apply.

**Not CLW:** The court may extend the deadline if the moving party shows good cause.

**CLW:** If the moving party shows good cause, the court may extend the deadline.

Separate the condition from the consequence with a comma.

Four words introduce conditions, and they are not interchangeable. State drafting manuals converge on this division:

| Word            | Use it for                                                 |
|-----------------|------------------------------------------------------------|
| <b>if</b>       | A condition that may never occur                           |
| <b>when</b>     | A condition certain to occur, where the question is timing |
| <b>whenever</b> | A condition that may occur more than once                  |
| <b>where</b>    | Place only. Never a condition.                             |

**CLW:** If the appellee files a cross-appeal, the appellant may file a reply brief.

**CLW:** When the clerk enters the judgment, the appeal period begins.

**CLW:** Whenever the court continues a hearing, the clerk must notify each party.

**Not CLW:** Where a party fails to appear, the court may enter a default.

**CLW:** If a party does not appear, the court may enter a default.

*Where* used as a condition is common and always avoidable. It also collides with its spatial sense, which is the one meaning it should carry.

**Where the source puts the consequence first**, a restatement may reorder. Order is presentation, not content, and reordering a condition does not change what the provision requires. Reordering an enumerated list is different and is forbidden (Rule 5.6).

### Rule 5.2 — Put one condition in each sentence.

Where a consequence depends on two or more conditions, do not stack them in one sentence. Use a vertical list.

**Not CLW:** The court may grant relief if the motion is timely, the movant shows excusable neglect, the opposing party is not prejudiced, and the movant has a meritorious defense.

**CLW:** The court may grant relief only if each of the following is true:

- The motion is timely
- The movant shows excusable neglect
- The opposing party is not prejudiced
- The movant has a meritorious defense.

State whether the conditions are conjunctive or disjunctive in the introductory text (Rule 4.4). Whether a court must find all four elements or any one of them is the entire content of the provision, and a reader must never have to infer it.

**Where conditions are nested**, show the nesting with the list structure. Do not flatten it.

**CLW:** The court may grant relief only if both of the following are true:

- The motion is timely
- Either of the following applies:
  - The movant shows excusable neglect
  - The judgment is void.

## Exceptions

### Rule 5.3 — State an exception in its own sentence.

An exception embedded in the sentence it modifies forces the reader to hold the rule and its qualification at once, and it usually makes the scope of the exception unclear.

**Not CLW:** A party must file the brief within 40 days, except that a party proceeding without counsel must file within 60 days unless the court orders otherwise.

**CLW:** A party must file the brief within 40 days. A party proceeding without counsel must file within 60 days. The court may order a different period.

Name what the exception applies to. Do not write a bare *except as otherwise provided*.

**Not CLW:** Except as otherwise provided, this rule applies to all appeals.

**CLW:** This rule applies to every appeal. Rule 4(b) states a different deadline for a criminal appeal. Rule 26(b) limits the court's power to extend a statutory time limit.

A bare *except as otherwise provided* tells the reader that a qualification exists somewhere and leaves the reader to find it. If you cannot list the exceptions, cite the provision that contains them.

### Rule 5.4 — Do not use a proviso.

A proviso is a clause beginning *provided that*, *provided however*, or *provided further*. Drafting authorities have condemned it for more than a century, and courts have construed it as an exception, a condition, a limitation, and an independent grant, depending on context.

Determine what the proviso does, then write it.

| The proviso is doing this | Write                          |
|---------------------------|--------------------------------|
| Stating an exception      | A separate sentence. Rule 5.3. |
| Stating a condition       | An <i>if</i> clause. Rule 5.1. |

| The proviso is doing this | Write                                  |
|---------------------------|----------------------------------------|
| Adding a requirement      | A separate sentence with <i>must</i> . |
| Limiting scope            | A separate sentence stating the limit. |

**Not CLW:** The court may grant an extension; provided that the request is filed before the deadline expires; provided further that no extension may exceed 30 days.

**CLW:** The court may grant an extension. The party must request the extension before the deadline expires. An extension must not exceed 30 days.

**Restrict *notwithstanding*.** Use it only where the text overrides a specific, cited provision. Never write *notwithstanding any other provision of law*, which asks the reader to search the entire corpus for what has been displaced.

**Not CLW:** Notwithstanding any other provision of law, the agency may act.

**CLW:** The agency may act under this section even if section 12(b) would otherwise forbid it.

**Restrict *subject to*.** Use it only with a specific citation.

**Not CLW:** Subject to the foregoing, the trustee may sell the property.

**CLW:** The trustee may sell the property. Section 3(c) requires the trustee to give notice first.

## Cross-references

### Rule 5.5 — Cite the specific provision.

A cross-reference names a provision. It does not gesture at one.

Do not use: *the foregoing*, *the above*, *the preceding*, *hereinabove*, *hereinbelow*, *as set forth above*, *the aforementioned section*, *said section*, *this Act* (where a section is meant).

**Not CLW:** The party must comply with the requirements set forth above.

**CLW:** The party must comply with the requirements in subsection (b).

Cite at the level of the smallest provision that contains what you mean. Cite *Rule 26(b)(1)*, not *Rule 26*, where only paragraph (b)(1) is relevant.

**In a restatement, keep the source's citation form.** If the source cites *Rule 26(b)(1)–(2)*, the restatement cites *Rule 26(b)(1)–(2)*. Do not expand a range, collapse one, or convert a citation to a description.

**Not CLW:** This power does not extend to the time limits described in the rule about computing and extending time.

**CLW:** This power does not apply to Rule 26(b).

**Avoid a chain of cross-references.** Where provision A refers to B, which refers to C, state the content once and cite it, rather than making the reader follow the chain.

**Rule 5.6** — Do not change the source’s structure or designations.

The paragraph designations of a statute or rule are part of the law. Courts cite them, parties plead them, and other provisions incorporate them. A restatement that renumbers, reorders, merges, or splits them has broken the citation network.

In a restatement:

- Do not renumber. Subsection (b)(3) stays (b)(3).
- Do not reorder enumerated items. Where the source lists three grounds in a given order, the restatement lists them in that order, even if a different order would read better.
- Do not merge two subsections into one, or split one into two.
- Do not promote a clause to a subsection, or demote a subsection to a clause.
- Do not add a designation to text the source left undesignated.
- Do not add a heading that the source does not have, unless the heading is clearly marked as editorial.

*The rule against reordering is narrower than it looks. Rule 5.1 permits a writer to put a condition before its consequence within a sentence, because sentence order is presentation. Rule 5.6 forbids reordering enumerated items, because their order is part of the instrument’s structure and is cited.*

**Where the source’s structure is genuinely unusable at R3 or R4** — a subsection with nine nested clauses, for example — do not restructure it. Restate it in its own order and add an editorial navigation aid that is clearly marked as editorial.

**CLW (R3):** *Editorial note: subsection (b)(3) is set out below in the order the rule states. The four requirements apply together.*

## Incorporation

**Rule 5.7** — Incorporate external material only as the governing regime allows.

Citing external material and incorporating it are different acts. A citation points the reader somewhere. An incorporation makes the external material part of the text, with the same force. This is how a privately written technical standard acquires the force of law.

Incorporation is regulated. Federally it runs under 1 CFR part 51, which governs whether material is eligible, whether approval is required, and how to obtain it. Many states impose comparable limits.

When you incorporate:

- Name the material exactly, with its issuing body, title, edition or version, and date.

- State whether the incorporation is static or rolling. A static incorporation fixes the version named. A rolling incorporation takes future amendments, and in many jurisdictions it is an unlawful delegation.
- State where the reader may obtain the material. Text that binds a reader who cannot read it is a due-process problem, not a drafting problem.
- Follow the governing incorporation regime. Refer to the order of precedence in the General introduction.

**In a restatement, never convert a citation into an incorporation, or an incorporation into a citation.** The two carry different legal effect, and the choice belongs to the source.

**Source:** “...must comply with ASTM D1234-19, incorporated by reference...”

**Not CLW:** ...must comply with the applicable ASTM standard. (This drops the version and converts an incorporation into a description.)

**CLW:** ...must comply with ASTM D1234-19, which the rule incorporates by reference.

## Section 6 — Operative writing

Operative writing is text that has legal effect: a court rule, a statute, a regulation, an ordinance, an order, or a contract term. This section applies when you draft such text. Where you restate text that someone else drafted, Section 10 controls and this section applies only to the form of the restatement.

### Summary of the rules

- **Rule 6.1** — Write in the singular.
- **Rule 6.2** — State the rule, then the exceptions, then the consequences.
- **Rule 6.3** — Write a duty as a duty, not as a description.
- **Rule 6.4** — State every condition on which a duty or power depends.
- **Rule 6.5** — Give each provision a designation and a heading.
- **Rule 6.6** — State the effective date and the transition.
- **Rule 6.7** — State whether the provisions are severable.
- **Rule 6.8** — Confirm that the delegation authorizes what you draft.
- **Rule 6.9** — Match the operator to the instrument.

#### Rule 6.1 — Write in the singular.

Write *a party*, not *parties*. The singular avoids a question that the plural always raises: whether a requirement applies to each member of a class or to the class as a whole.

**Not CLW:** Parties must file responses within 14 days. (Does each party file one response? Do the parties file one response jointly?)

**CLW:** Each party must file a response within 14 days.

Where a provision genuinely applies to a group acting together, say so.

**CLW:** The parties must file a joint status report within 14 days.

Use *each* rather than *all* or *any* where you mean the members individually. Use *a* or *an* for the general case.

**Rule 6.2** — State the rule, then the exceptions, then the consequences.

Order a provision so that the reader who needs only the general rule can stop after the first sentence.

1. The general rule.
2. Any exception, limitation, or qualification.
3. The consequence of not complying.
4. Any cross-reference.

**CLW:** A party must file the notice of appeal within 30 days after the judgment is entered. A party in a case in which the United States is a party must file within 60 days. If a party does not file within the applicable period, the court of appeals has no jurisdiction over the appeal. Rule 4(a)(5) states when the district court may extend the period.

**Rule 6.3** — Write a duty as a duty, not as a description.

A common defect in drafting is a sentence that describes a state of affairs where the drafter meant to require one.

**Not CLW:** The certificate of service is attached to the motion. (Is this a requirement, or a statement of fact?)

**CLW:** A party who files a motion must attach a certificate of service.

**Not CLW:** All filings are in electronic form.

**CLW:** A party must file in electronic form.

Every operative sentence must contain one of the approved operators (Rule 3.1). A sentence in a rule that contains no operator either states a definition, states a scope, or is defective.

**Rule 6.4** — State every condition on which a duty or power depends.

Where a power depends on a finding, the text must say so. Where a duty depends on an event, the text must name the event.

**Not CLW:** The court may impose sanctions. (On what basis? After what process?)

**CLW:** The court may impose sanctions on a party who violates this rule. Before it does so, the court must give the party notice and an opportunity to respond.

Where a period runs from an event, name the event and state the direction.

■ **Not CLW:** The response is due in 21 days.

■ **CLW:** A party must file the response within 21 days after service of the motion.

Rule 9.6 gives the form for a period.

**Rule 6.5 — Give each provision a designation and a heading.**

Use the designation scheme that the governing authority requires. Where none is required, use a consistent hierarchy and do not skip levels.

A conventional federal hierarchy is: section, subsection (a), paragraph (1), subparagraph (A), clause (i), subclause (I).

- Do not nest more than four levels deep. A provision that needs five levels should be two provisions. Federal practice is stricter: the CFR permits six paragraph levels, but the Office of the Federal Register recommends no more than three, on the ground that deeper nesting makes a rule hard to use. Prefer three.
- Give each section a heading. Do not use a heading to state an exception, a definition, or a duty, and do not put content in a heading that appears nowhere else.

**Whether a heading is operative varies by jurisdiction.** Some states tell drafters that a court may consider a section heading when construing a statute. Others state that headings are not part of the statute and may not be considered. The drafting advice above holds either way, because a heading that carries no unique content is safe under both rules.

A restatement must not assume either answer. Do not treat a heading as non-operative without checking the governing jurisdiction. Do not import content from a heading into the body of a restatement. Where headings do not count, importing changes what the provision says.

**Rule 6.6 — State the effective date and the transition.**

Text that changes existing law must say when it takes effect and what happens to matters already pending.

■ **CLW:** This rule takes effect on January 1, 2027. It applies to a case filed on or after that date. The former rule continues to apply to a case filed before that date.

State whether the change is retroactive. Silence on retroactivity is a defect.

**The default on silence differs by jurisdiction.** Some codes provide that no statute operates retroactively unless it says so expressly. Others apply a presumption against retroactivity that contrary legislative intent can defeat. The two produce different results on the same silent text.

A restatement must not supply an answer the source does not give (Rule 10.4). Where the source is silent, say that it is silent and cite the governing default if one exists. Do not state the default as though the source had stated it.

**Rule 6.7** — State whether the provisions are severable.

If a court holds one provision invalid, does the rest survive? Text that does not answer has left the question to a court.

Most jurisdictions have a general severability provision in their code, and where one applies the drafter may rely on it. Not all do. Confirm which is the case before deciding to say nothing.

■ **CLW:** If a court holds any provision of this rule invalid, the remaining provisions continue in effect.

State the opposite where you mean it. Some schemes are meant to stand or fall together, and a severability clause bolted on by habit defeats that.

■ **CLW:** The provisions of this section are not severable. If a court holds any provision invalid, the section has no effect.

**In a restatement, do not supply a severability conclusion the source does not state.** Rule 10.4 applies. Where the source is silent and a general code provision supplies the answer, cite the code provision rather than presenting the answer as the source's own.

**Rule 6.8** — Confirm that the delegation authorizes what you draft.

This rule applies where you draft under delegated authority: a regulation under an enabling statute, a local rule under a rules-enabling act, a bylaw under a charter.

Rule 10.2 forbids adding content the source does not state. That rule governs restatement, where the writer and the source say the same thing. This rule is the same prohibition on a different axis. When you draft under a delegation, you write new text, but the enabling instrument bounds what you may write. Text beyond the delegation is void however well it is drafted.

Before drafting, identify the enabling provision and confirm it authorizes each duty, prohibition, penalty, remedy, and right of review in the draft.

Authority does not carry over between subjects. A statute authorizing rules on issuing a permit does not by itself authorize rules on suspending or revoking one. Some provisions — penalties, rights of appeal — commonly require specific authority even under a broad delegation.

■ **CLW:** This rule is adopted under section 12(c), which authorizes the agency to set filing procedures.

Where the delegation is doubtful, say so to the issuing body. Do not draft the provision and leave the question for litigation.

### Rule 6.9 — Match the operator to the instrument.

Rule 3.1 states what each operator does. This rule states where each may appear. In some bodies of law an operator used in the wrong instrument does not merely misstate a duty — it invalidates the document.

| Instrument                                                                                                     | Operators                                                                               |
|----------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------|
| <b>Binding</b> — statute, court rule, legislative rule, order, contract                                        | The full set in Rule 3.1, used directly.                                                |
| <b>Non-binding</b> — guidance, policy statement, interpretive rule, preamble, advisory note, committee comment | Do not direct an outside party with <i>must</i> , <i>must not</i> , or <i>may not</i> . |

The reason is structural. Under an administrative procedure act, a rule that imposes legally binding obligations must go through notice and comment. Guidance is exempt because it does not bind. A guidance document that directs outside parties in mandatory language may therefore be recharacterized as a binding rule issued without the required procedure, and set aside. Federal guidance on this point names *shall*, *must*, *required*, and *requirement*, and the concern extends to any wording that appears to impose an obligation.

There are two safe forms.

**Attribute the requirement to the binding source.** This is Rule 7.3, and it is the general answer.

- **Not CLW (guidance):** You must file the certification within 30 days.
- **CLW (guidance):** Section 40.12(b) requires a certification within 30 days after the permit issues.

**Or write without an operator.**

- **CLW (guidance):** The agency ordinarily reviews a complete application within 60 days. This paragraph does not create a right to a decision in that period.

The same discipline applies to a preamble. A preamble explains a rule; it is not the rule. Do not put an obligation in a preamble that does not appear in the regulatory text, and do not use the preamble as a substitute for regulatory language.

## Section 7 — Explanatory writing

Explanatory writing describes operative text without being operative text. It includes restatements, summaries, annotations, notes, glosses, headnotes, and practice commentary.

It also includes two forms that sit close to operative text and are often mistaken for it: the **preamble** to a rule or regulation, and a **guidance document**, policy statement, or interpretive rule. Both explain what binding text requires. Neither binds. Rule 6.9 states the consequence of getting that wrong.

Section 10 governs whether an explanatory text is *accurate*. This section governs how it is *written*.

## Summary of the rules

- **Rule 7.1** — Write at a stated register.
- **Rule 7.2** — At R4, give a non-equivalence notice.
- **Rule 7.3** — Do not use an operator to describe what the source does.
- **Rule 7.4** — Give one topic to each paragraph.
- **Rule 7.5** — Give a maximum of six sentences to each paragraph.
- **Rule 7.6** — Do not write a meta-sentence.

### **Rule 7.1** — Write at a stated register.

Every explanatory text has a declared register (R1 through R4). The register is recorded in the document's metadata, and it governs sentence length (Rule 4.1), glossing (Rule 2.8), and the non-equivalence notice (Rule 7.2).

Do not mix registers within a document. A restatement written at R3 stays at R3 throughout, including in its notes.

Where the same source is published at more than one register, each version is a separate document with its own proposition ledger (Part 3).

### **Rule 7.2** — At R4, give a non-equivalence notice.

R1, R2, and R3 text is required to be semantically equivalent to its source (Rule 10.1). R4 text is not, because a described equivalent for a term of art cannot be equivalent.

R4 text must therefore carry a notice, placed before the text. The notice states three things: that the text is not the law, that it is not equivalent to the law, and where the authoritative text is.

**CLW (R4 notice):** This page explains a court rule in everyday language. It is not the rule and it does not have the same meaning as the rule. It leaves out detail on purpose. The rule itself is at [citation]. If a decision matters to you, read the rule or talk to a lawyer.

Do not put an equivalence disclaimer on R1, R2, or R3 text. Doing so tells the reader that the text may be inaccurate, which under this standard it may not be. A general “not legal advice” notice is different and is permitted at every register.

### **Rule 7.3** — Do not use an operator to describe what the source does.

The approved operators (Rule 3.1) impose duties. Explanatory text does not impose duties; it reports the duties the source imposes. Keep the two functions separate.

■ **Not CLW:** You must file within 14 days. (The summary appears to impose the duty.)

■ **CLW:** The rule requires a party to file within 14 days.

■ **CLW:** Under the rule, a party must file within 14 days.

The second and third forms attribute the duty to the source. The reader can see where the obligation comes from, and the writer has not stepped into the role of the rulemaker.

At R4 the direct address form (*you must*) is permitted, because it is clearer for a reader who is not a lawyer. Where it is used, the non-equivalence notice under Rule 7.2 must be present.

**Never write an operator that the source does not support.**

■ **Not CLW:** You should file early to be safe.

■ **CLW:** The rule sets a deadline of 14 days. It does not require earlier filing.

The first form is advice. Rule 10.5 forbids it.

**This rule is also a compliance rule.** Rule 7.3 was written to keep a summariser out of the rulemaker's chair. It happens to be the drafting form that federal guidance on agency guidance documents requires. Mandatory language is permitted in a non-binding document when the writer restates an existing statutory or regulatory requirement and cites it. The attributed form does exactly that. It assigns the duty to the binding source and leaves the explanatory document non-binding. Refer to Rule 6.9.

**Rule 7.4 — Give one topic to each paragraph.**

A paragraph covers one topic: one subsection, one requirement, one procedural step, one concept. Where a subsection covers two topics, write two paragraphs.

Where the restatement tracks a source's structure, one paragraph per subsection is usually the right unit. A heading that names the subsection helps the reader move between the restatement and the source.

**Rule 7.5 — Give a maximum of six sentences to each paragraph.**

A longer paragraph in legal text becomes a wall, and readers skip walls.

Where a topic needs more than six sentences, either split it into two topics or use a vertical list (Rule 4.4).

**Rule 7.6 — Do not write a meta-sentence.**

A meta-sentence is a sentence about the text rather than about the law. It announces, summarizes, transitions, or concludes without adding content.

Do not write:

- *This section addresses the following topics.*
- *In summary, the rule requires three things.*
- *It is important to note that the deadline is jurisdictional.*
- *Overall, this rule gives the court broad discretion.*
- *As discussed above, the party must file a notice.*
- *This rule is designed to ensure fairness to both parties.*

An opening meta-sentence delays the content. A closing meta-sentence adds a characterization that the source does not contain — and a characterization is an interpretation, which Rule 10.4 forbids.

**Not CLW:** This rule addresses the timing of appeals. It is important to note that the deadline is strict. In summary, a party has 30 days.

**CLW:** A party must file the notice of appeal within 30 days after the judgment is entered.

### Two related prohibitions.

Do not write a sentence that characterizes the purpose or policy of a provision, unless the source states that purpose. *This rule is designed to prevent delay* is an interpretive claim.

Do not write a closing synthesis. A restatement ends when the source's content is exhausted.

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## Section 8 — Consequence statements

A consequence statement tells the reader what happens if a requirement is not met. It is the legal analogue of a safety warning in technical documentation, and it serves the same function: it puts the risk where the reader will meet it.

Consequence statements matter more in legal writing than most drafters allow. A deadline whose consequence is a fee is a different rule from one whose consequence is loss of the claim. A reader cannot tell the two apart from the deadline alone.

### Summary of the rules

- **Rule 8.1** — Name the severity of the consequence.
- **Rule 8.2** — State the consequence with the requirement.
- **Rule 8.3** — State what the reader must do, then what happens if the reader does not.
- **Rule 8.4** — Do not state a consequence that the source does not state.

**Rule 8.1** — Name the severity of the consequence.

Use one of these four labels. A publisher may map them to typographic or graphical treatment, which this standard does not regulate.

| Label                 | Meaning                                                                                                                                |
|-----------------------|----------------------------------------------------------------------------------------------------------------------------------------|
| <b>Jurisdictional</b> | Not complying deprives the court of power to act. The defect cannot be cured, waived, or forgiven.                                     |
| <b>Mandatory</b>      | Not complying causes a stated adverse result — dismissal, default, preclusion, sanction — but the court may have power to excuse it.   |
| <b>Discretionary</b>  | Not complying permits, but does not require, the court to impose an adverse result.                                                    |
| <b>Administrative</b> | Not complying causes a procedural inconvenience — rejection of a filing, a fee, a request to refile — that does not affect the merits. |

**Jurisdictional:** A party must file the notice of appeal within 30 days after the judgment is entered. This deadline is jurisdictional. If a party misses it, the court of appeals has no power to hear the appeal, and no court may extend the period.

**Mandatory:** A party must serve the summons within 90 days after the complaint is filed. If a party does not, the court must dismiss the action against that defendant without prejudice. The court must extend the period if the party shows good cause.

**Discretionary:** A party must include a table of authorities. If a party does not, the court may strike the brief.

**Administrative:** A party must file in PDF format. If a party files in another format, the clerk will reject the filing and the party may refile.

Do not use *jurisdictional* unless the source or controlling authority says so, or unless the consequence is unambiguously jurisdictional. Whether a deadline is jurisdictional is heavily litigated, and characterizing one incorrectly is a serious fidelity failure. Where the question is unsettled, Rule 10.4 applies: state that it is unsettled and cite both sides.

## **Rule 8.2** — State the consequence with the requirement.

Put the consequence next to the requirement it enforces, not in a distant subsection. A reader who finds the deadline and not the consequence has half the rule.

**Not CLW:** A party must file the notice within 30 days. [Twelve subsections later:] A late notice deprives the court of jurisdiction.

**CLW:** A party must file the notice within 30 days. A late notice deprives the court of jurisdiction. Rule 4(a)(5) states the only exception.

In a restatement, this is a matter of placement, not content. Restating a consequence next to its requirement does not violate Rule 5.6, because it does not change the source's structure. Cite the subsection the consequence comes from.

**Rule 8.3** — State what the reader must do, then what happens if the reader does not.

Requirement first, consequence second. A reader who complies never needs the second sentence.

**Not CLW:** The appeal will be dismissed if the appellant does not file a brief within 40 days.

**CLW:** The appellant must file a brief within 40 days. If the appellant does not, the court may dismiss the appeal.

**Write the consequence in the affirmative.** A consequence stated as a double negative is hard to parse under pressure, and readers meet consequence statements under pressure.

**Not CLW:** Relief is not available unless the movant does not delay.

**CLW:** The court may grant relief only if the movant acts promptly.

**Rule 8.4** — Do not state a consequence that the source does not state.

Many requirements have no stated consequence. Silence is not the same as no consequence, and it is not the same as a consequence the writer can supply.

**Not CLW:** A party must include a certificate of compliance. A brief without one will be rejected. (The rule does not say this.)

**CLW:** A party must include a certificate of compliance. The rule does not state what happens if a party does not.

Where a consequence comes from a different provision, a local rule, or case law, cite it and identify the source.

**CLW:** The rule does not state a consequence. Under Sixth Circuit Rule 30(g), the clerk may reject a brief that does not comply. Refer to [citation].

## Section 9 — Punctuation, numbers, and word count

### Summary of the rules

#### Punctuation

- **Rule 9.1** — Use the serial comma.
- **Rule 9.2** — Do not use a semicolon in text that you draft.
- **Rule 9.3** — Do not use “and/or.”
- **Rule 9.4** — Restructure a sentence in which the reach of a modifier is unclear.

## Numbers, dates, and periods

- **Rule 9.5** — Write a number as a numeral, once.
- **Rule 9.6** — State a period, its trigger, and its direction.

## Word count

- **Rule 9.7** — Count each of these as one word.
- **Rule 9.8** — Expand an abbreviation at first use.

## Relative clauses

- **Rule 9.9** — Use “that” for a restrictive clause and “which” for a non-restrictive one.

## Punctuation

### Rule 9.1 — Use the serial comma.

Put a comma before the connector in a list of three or more items. In ordinary prose this is a style preference. In legal text it is a substantive requirement, because its absence creates a genuine ambiguity about whether the last two items are one item or two.

**Ambiguous:** distribution, packing for shipment and storage (Is *packing for shipment and storage* one activity, or are *packing for shipment* and *storage* two?)

**CLW:** distribution, packing for shipment, and storage

**CLW:** distribution, and packing for shipment and storage

The two CLW forms mean different things, and the ambiguous form means neither. A court has decided a wage case on exactly this point.

Do not add a serial comma to quoted text (Rule 2.7). Where a source omits one and the omission matters, say so.

### Rule 9.2 — Do not use a semicolon in text that you draft.

A semicolon lets a writer join two sentences that should be separate, and it lets a writer build a list whose items run to a paragraph each. Both defeat Rule 4.1.

**Not CLW:** The clerk must enter the judgment; the parties must then file a bill of costs.

**CLW:** The clerk must enter the judgment. Each party must then file a bill of costs.

## Two exceptions.

1. **Quoted text.** Rule 2.7 preserves the source’s punctuation.

2. **A restatement that reproduces a source’s enumerated series.** Statutory paragraphs are conventionally separated by semicolons, and the semicolon carries the connector (; *and*; *or*) that tells the reader whether the list is conjunctive. Where a restatement reproduces the series, it may reproduce the punctuation. Where it converts the series to a vertical list, Rule 4.4 applies and the connector moves to the introductory text.

**Rule 9.3 — Do not use “and/or.”**

*And/or* has been condemned by courts for a century, and no court has settled what it means. It may mean A, or B, or both. It may mean the writer did not decide.

Write what you mean.

| You mean                  | Write                               |
|---------------------------|-------------------------------------|
| A, B, or both             | <i>A or B, or both</i>              |
| A and B together          | <i>A and B</i>                      |
| Exactly one of A and B    | <i>either A or B, but not both</i>  |
| Any one or more of a list | <i>one or more of the following</i> |
| Every item in a list      | <i>each of the following</i>        |

**Not CLW:** The court may impose a fine and/or costs.

**CLW:** The court may impose a fine, costs, or both.

Where a source uses *and/or*, a restatement preserves it and flags it as ambiguous under Rule 10.4. Do not resolve it.

**Rule 9.4 — Restructure a sentence in which the reach of a modifier is unclear.**

Where a modifier follows a series, English does not settle whether it reaches the whole series or only the last item. Courts resolve this with competing canons — the rule of the last antecedent and the series-qualifier canon — which is to say they do not resolve it reliably.

**Ambiguous:** a lawyer, an accountant, or an agent licensed in this state (Must all three be licensed, or only the agent?)

**CLW:** a lawyer, an accountant, or an agent, if the person is licensed in this state

**CLW:** a lawyer, an accountant, or an agent who is licensed in this state. The licensing requirement applies only to an agent.

Use a vertical list, repeat the modifier, or state its reach in a separate sentence.

The same problem occurs with a leading modifier.

- **Ambiguous:** written notice or demand
- **CLW:** written notice, or a written demand
- **CLW:** written notice, or a demand in any form

Where a source contains an unresolved modifier, a restatement preserves it. Rule 10.4 controls.

## Numbers, dates, and periods

**Rule 9.5** — Write a number as a numeral, once.

Write *14 days*, not *fourteen (14) days* and not *fourteen days*.

The word-and-numeral doublet originated as a fraud control for negotiable instruments. In a rule or a statute it is noise. It also creates a new failure mode. An amendment may change one form and not the other, leaving a provision that states two different numbers.

### Exceptions.

- Begin a sentence with a word, or restructure so the sentence does not begin with a number.
- Write a number that is part of a term of art as the term of art has it: *Rule 12(b)(6)*, *Section 1983*, *a Chapter 7 case*.
- Preserve the source's form in quoted text (Rule 2.7).
- Where a governing drafting manual requires the doublet, follow it.

Write a monetary amount with a currency symbol and numerals: *\$50,000*. Write a percentage with a numeral: *5 percent* in text, *5%* in a table.

**Rule 9.6** — State a period, its trigger, and its direction.

A period of time in legal text has three parts, and all three must be stated.

1. **The length.** *14 days, 30 days, one year*.
2. **The trigger.** The event the period runs from or to.
3. **The direction.** *After or before*.

- **Not CLW:** The response is due in 21 days.
- **CLW:** A party must file the response within 21 days after the motion is served.

Use *after* and *before*. Do not use *from*, *within ... of*, or *following*, all of which leave the direction or the inclusion of the trigger day unclear.

■ **Not CLW:** within 30 days of entry of judgment (Before entry? After? Both?)

■ **CLW:** within 30 days after the judgment is entered

Write a date as month, day, year: *January 1, 2027*. Do not write a numeric date, which is read differently in different countries.

Where the source states a period without a trigger, do not supply one (Rule 10.2).

■ **CLW:** The rule allows 21 days. It does not state what event the period runs from.

## Word count

### Rule 9.7 — Count each of these as one word.

The sentence limits in Rule 4.1 would be unworkable if a citation counted as eight words. Count these as one word each:

- A full citation, however long. *Fed. R. Civ. P. 12(b)(6)* is one word. *Marbury v. Madison*, 5 U.S. (1 Cranch) 137 (1803) is one word.
- A quoted passage, however long.
- A case name.
- The name of a court, agency, party, or organization. *United States Court of Appeals for the Sixth Circuit* is one word.
- A number, with its unit. *30 days* is one word. *\$1,250,000* is one word.
- A date. *January 1, 2027* is one word.
- A defined term, however many words it contains. *Qualified Institutional Buyer* is one word.
- A hyphenated compound. *notice-and-comment* is one word.
- Any text in parentheses. A parenthetical is one word regardless of length.
- A statutory or rule designation. *subsection (b)(3)(A)(ii)* is one word.

A colon at the end of introductory text before a vertical list ends the sentence for counting purposes. Each item in the list is counted separately against the limit.

Everything else counts as one word each, including articles, prepositions, and conjunctions.

■ **CLW:** Under Fed. R. Civ. P. 4(m), a plaintiff must serve the summons within 90 days after filing the complaint. (Counted: Under / [citation] / a / plaintiff / must / serve / the / summons / within / [90 days] / after / filing / the / complaint = 14 words.)

### Rule 9.8 — Expand an abbreviation at first use.

Give the full term first, then the abbreviation in parentheses. Use the abbreviation afterward.

■ **CLW:** The Administrative Procedure Act (APA) governs this rulemaking.

**Exceptions.**

- Citation abbreviations follow the governing citation manual and are not expanded.
- An abbreviation that is more familiar than its expansion is not expanded: *FBI*, *IRS*, *ERISA*, *IRA*.
- Do not expand an abbreviation in quoted text.

Do not create a new abbreviation for a term that appears fewer than three times. Do not create an abbreviation for a term of art that already has a settled short form.

**Relative clauses**

**Rule 9.9** — Use “that” for a restrictive clause and “which” for a non-restrictive one.

A restrictive clause identifies which thing is meant. It narrows the class, it is necessary to the sentence, and it takes no commas. Use *that*.

A non-restrictive clause adds information about a thing already identified. It does not narrow the class, and it is set off by commas. Use *which*.

The difference is not decorative. It determines whether a provision reaches a subset or the whole class.

**CLW:** The court may strike a brief that exceeds the page limit. (Only over-length briefs may be struck.)

**CLW:** The court may strike the brief, which exceeds the page limit. (This brief may be struck. Its length is incidental.)

State drafting manuals treat this as a standard convention, and the comma is doing as much work as the word.

**In a restatement, preserve the source’s choice, including its commas.** Converting *which* to *that*, or dropping the commas around a non-restrictive clause, narrows the provision. Rule 2.7 forbids changing quoted text, and Rule 10.3 forbids dropping content in a restatement.

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## **Section 10 — Fidelity and restatement**

This section has no counterpart in any controlled language written for technical documentation, and it is the reason this standard exists.

A restatement is a text that says, in different words, what an authoritative text says. It is measured against the source, not against a reader’s satisfaction. A restatement that is clear, short, and readable but says something the source does not say has failed completely.

## Summary of the rules

### The equivalence requirement

- **Rule 10.1** — A restatement must be semantically equivalent to its source.
- **Rule 10.2** — Do not add content.
- **Rule 10.3** — Do not drop content.

### Ambiguity

- **Rule 10.4** — Preserve ambiguity that exists in the source.

### Scope of the writer's role

- **Rule 10.5** — Do not advise, predict, or apply.
- **Rule 10.6** — Preserve the actor, or the absence of one.

### Operators and quantifiers

- **Rule 10.7** — Map every normative operator, and record the mapping.
- **Rule 10.8** — Preserve every quantifier and every connector.

### Version

- **Rule 10.9** — Bind the restatement to a version of the source.

## The equivalence requirement

**Rule 10.1** — A restatement must be semantically equivalent to its source.

Semantic equivalence means that every legal proposition in the source appears in the restatement, and that the restatement contains no legal proposition that is not in the source. It is a two-way test, and both directions must hold.

Equivalence is required at R1, R2, and R3. It is not achievable at R4, which is why R4 carries a notice (Rule 7.2).

Equivalence is verified, not asserted. Part 3 gives the method: decompose the source into atomic propositions, map each one to text in the restatement, then map in the other direction. A restatement that has not been verified is a draft.

**Rule 10.2** — Do not add content.

Do not add a duty, a right, a permission, a condition, an exception, a deadline, a consequence, a definition, an actor, or a purpose that the source does not state.

The most common additions are these.

**Adding an actor.** Rule 3.6 and Rule 10.6.

**Adding a consequence.** Rule 8.4.

**Adding a definition.** Rule 2.6.

**Adding a purpose.**

■ **Source:** “The court may seal the record.”

■ **Not CLW:** The court may seal the record to protect the privacy of the parties. (The rule states no purpose. Adding one narrows the power.)

■ **CLW:** The court may seal the record. The rule does not state on what grounds.

**Adding a limit.**

■ **Source:** “The court may grant an extension.”

■ **Not CLW:** The court may grant a reasonable extension. (*Reasonable* is a standard. The rule imposes none.)

■ **CLW:** The court may grant an extension. The rule does not limit the length.

**Adding a form requirement.**

■ **Source:** “A party must give notice.”

■ **Not CLW:** A party must give written notice.

**Adding an inference.**

■ **Source:** “The court must hold a hearing within 14 days.”

■ **Not CLW:** The court must hold a hearing within 14 days, so a party should prepare quickly.

### Rule 10.3 — Do not drop content.

Do not omit a condition, an exception, a qualifier, a deadline, a cross-reference, or a consequence.

The most common omissions are these.

**Dropping a condition.** If a power depends on a finding, the restatement states the finding.

■ **Source:** “On motion and for good cause, the court may extend the period.”

■ **Not CLW:** The court may extend the period. (Two conditions dropped: the motion requirement and the good-cause standard.)

■ **CLW:** On a party’s motion and for good cause, the court may extend the period.

**Dropping a qualifier.**

■ **Source:** “...a final order...”

■ **Not CLW:** ...an order...

**Dropping an exception.** A restatement of a general rule that omits its exception has stated a broader rule than the source.

**Dropping a cross-reference.** Rule 5.5.

**Dropping a standard.** Rule 2.2. Replacing *clear and convincing evidence* with *strong evidence* drops the standard even though it looks like a paraphrase.

**Compressing a list.** *Including A, B, and C* is not the same as *including A and others*.

## Ambiguity

**Rule 10.4** — Preserve ambiguity that exists in the source.

Where the source is ambiguous, the restatement is ambiguous in the same way and to the same degree. The writer marks the ambiguity. The writer does not resolve it.

This inverts the governing purpose of every controlled language written for technical documentation. Those standards exist to remove ambiguity, and a technical writer who removes it has done the job. A legal writer who removes it has legislated.

### Four kinds of ambiguity, and what to do with each.

**1. Semantic ambiguity** — a word with more than one possible meaning in context.

■ **CLW:** The rule requires “notice.” It does not state whether notice must be written.

**2. Syntactic ambiguity** — a modifier, a connector, or a pronoun whose reach is unclear. Rule 9.4.

■ **CLW:** The statute applies to “a lawyer, an accountant, or an agent licensed in this state.” It is not clear whether the licensing requirement applies to all three or only to an agent. Refer to [citation].

**3. Structural gaps** — the source simply does not address a question.

■ **CLW:** The rule sets a 21-day period. It does not state what happens if a party files late.

**4. Contested construction** — courts have divided.

■ **CLW:** The statute uses “shall.” The Sixth Circuit has construed this word as mandatory in this context. Refer to [citation]. The Ninth Circuit has construed it as directory. Refer to [citation].

### What you may not do.

- Do not choose the better reading and present it as the rule.
- Do not choose the more common reading.
- Do not choose the reading that reads more smoothly.

- Do not silently omit the ambiguous provision.
- Do not add a hedge (*generally, typically, usually*) in place of stating the ambiguity. A hedge disguises a gap as a tendency.

■ **Not CLW:** Notice generally must be in writing.

■ **CLW:** The rule requires notice. It does not state whether notice must be written.

**Marking.** Use a consistent form. This standard recommends a sentence beginning *The rule does not state, The statute does not define, or Courts have divided on*. A publisher may render these typographically.

Every ambiguity flag is recorded in the proposition ledger as an unresolved proposition (Part 3).

## Scope of the writer's role

### Rule 10.5 — Do not advise, predict, or apply.

A restatement states what the source says. It does not state what a reader should do, what a court is likely to do, or how the source applies to a particular set of facts.

#### Do not advise.

■ **Not CLW:** You should file early, because clerks sometimes reject filings.

■ **CLW:** The rule sets a deadline of 14 days.

#### Do not predict.

■ **Not CLW:** A court will usually grant an extension in these circumstances.

■ **CLW:** The court may grant an extension for good cause.

#### Do not apply.

■ **Not CLW:** If your motion was filed on day 15, it was untimely.

■ **CLW:** A party must file the motion within 14 days after service.

#### Do not evaluate.

■ **Not CLW:** This rule gives the court unusually broad discretion.

■ **CLW:** The rule states no standard for the court's decision.

The line is between describing the source and using it. Describing is permitted at every register. Using it is the practice of law, and a published restatement is not addressed to a client.

**Permitted.** A restatement may state a fact about the source's procedural history: when it was adopted, when it was amended, and what a committee note says. Attribute the note.

### Rule 10.6 — Preserve the actor, or the absence of one.

Where the source names who acts, the restatement names the same person. Where the source does not name anyone, the restatement does not either.

Rule 3.6 gives the passive-voice mechanics. This rule states the fidelity principle behind it.

| Source                                             | Restatement                                                                    |
|----------------------------------------------------|--------------------------------------------------------------------------------|
| Names an actor                                     | Names the same actor. Do not generalize <i>the clerk</i> to <i>the court</i> . |
| Names a class                                      | Names the same class. Do not narrow <i>a party</i> to <i>the plaintiff</i> .   |
| Names no actor                                     | Names no actor. State the gap.                                                 |
| Names no actor, but another provision supplies one | May name the actor, with a citation to the provision that supplies it.         |

**Source:** “The clerk must enter the judgment.”

**Not CLW:** The court must enter the judgment. (*The clerk* and *the court* are different actors with different powers.)

**Source:** “A party may object.”

**Not CLW:** The defendant may object. (This narrows the class.)

## Operators and quantifiers

### Rule 10.7 — Map every normative operator, and record the mapping.

The source’s operator determines what the provision does. Where the source uses a word outside the approved set (Rule 3.1), the restatement maps it to an approved operator. That word is most often *shall*. The mapping is a decision, and it must be recorded and justified.

| Source                         | Restatement                                                                    |
|--------------------------------|--------------------------------------------------------------------------------|
| shall (construed as mandatory) | must                                                                           |
| shall (construed as directory) | Do not map. State that the source says <i>shall</i> and cite the construction. |
| shall (declaratory)            | the simple present. Record the construction as declaratory.                    |
| shall not (prohibition)        | must not                                                                       |

| Source                   | Restatement                                                                 |
|--------------------------|-----------------------------------------------------------------------------|
| shall not (no authority) | may not                                                                     |
| may                      | may                                                                         |
| is entitled to           | is entitled to                                                              |
| is not required to       | need not                                                                    |
| should                   | Do not map to an operator. State that the source uses a non-mandatory word. |

**An inverted conditional is not an operator.** Older instruments invert a conditional clause with *should*: *Should the court desire to hear argument, Should a party fail to appear*. The word means *if*. It carries no deontic force, and the row above does not apply to it. Restate the clause with *if*.

■ **Source:** “Should the court desire to hear argument, the court may pass an order.”

■ **Not CLW:** The source uses *should*, which is not mandatory.

■ **CLW:** If the court wants to hear argument, the court may pass an order.

Test it by uninverting. If *Should X do Y* reads as *If X does Y*, the word is a conditional. If it reads as *X ought to do Y*, it is the non-operative *should* that Rule 3.1 governs.

**A *should* inside a stated test is part of a legal standard.** Where the source directs a decision-maker to determine whether something *should* be done, the word names the test rather than directing an actor. Rule 2.2 governs it: preserve it, and do not paraphrase it into an operator.

■ **Source:** “...must also conditionally determine whether any motion for a new trial should be granted...”

■ **Not CLW:** ...must determine whether a new trial must be granted.

■ **CLW:** ...must conditionally determine whether any motion for a new trial “should” be granted.

**Do not strengthen an operator.**

■ **Source:** “The court may, in its discretion, award costs.”

■ **Not CLW:** The court awards costs to the prevailing party. **Not CLW:** The court will award costs.

■ **CLW:** The court may award costs. The decision is within the court’s discretion.

**Do not weaken an operator.**

■ **Source:** “The clerk shall enter the default.”

■ **Not CLW:** The clerk may enter the default.

**Where the construction is contested, do not map.** Rule 10.4 controls.

**CLW:** The statute states that the agency “shall” publish the notice. Michigan courts have construed this word as directory in this context. Refer to [citation]. A party who does not comply is therefore not automatically barred.

Record every mapping in the proposition ledger with the authority relied on.

**Rule 10.8** — Preserve every quantifier and every connector.

Quantifiers and connectors carry as much legal content as operators, and they are easier to lose because they are small.

**Quantifiers.** *All, any, each, every, some, one or more, at least, no more than, not fewer than.* These are not stylistic variants of one another.

| Source                       | Do not write             |
|------------------------------|--------------------------|
| each party                   | the parties, all parties |
| any party                    | a party, every party     |
| all of the following         | the following            |
| one or more of the following | the following            |
| at least 14 days             | 14 days                  |
| no more than 30 days         | 30 days, about 30 days   |

**Connectors.** *And* and *or* are the difference between a conjunctive and a disjunctive test, which is the difference between two different rules.

**Source:** “...if the movant shows good cause and the opposing party is not prejudiced...”

**Not CLW:** ...if the movant shows good cause or the opposing party is not prejudiced...

Where a source uses *and/or*, preserve it and flag it (Rule 9.3, Rule 10.4).

**A connector is lost most often to the word cap, not to carelessness.** Splitting a long conjunctive series into one sentence per item is the obvious way to fit Rule 4.1, and it drops the *and* that bound them. Use a vertical list under Rule 4.4 instead, and state the connector in the introductory text.

**Exclusivity.** *Only, solely, exclusively.* Dropping *only* converts a limitation into a grant.

**Source:** “The court may act only on motion.”

**Not CLW:** The court may act on motion.

**Inclusivity.** *Including* opens a list. *Consisting of* and *means* close one. *Includes but is not limited to* is redundant with *includes* in most jurisdictions, but do not convert one to the other in a restatement — some jurisdictions treat *includes* as exhaustive.

## Version

**Rule 10.9** — Bind the restatement to a version of the source.

Legal texts amend. A restatement that does not name the version it restates will silently become wrong.

Every restatement records:

- The full citation of the source.
- The effective date of the version restated.
- A cryptographic hash of the exact source text used (Part 3 gives the method).
- The date the restatement was verified.

Where the source has a known amendment cycle — the Federal Rules amend on December 1 in most years — the publisher schedules re-verification against that cycle.

A restatement whose source has been amended since verification must be marked as unverified until it is re-verified against the new text.

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## Section 11 — Writing practices and general recommendations

### Summary of the rules

- **Rule 11.1** — Restructure the sentence when a word-for-word replacement fails.
- **Rule 11.2** — Use the same word for the same thing, every time.
- **Rule 11.3** — Do not use a phrasal verb.

### General recommendations

- **GR-1** — “Shall” and its history
- **GR-2** — The canons that do not save you
- **GR-3** — “Such” and “said” as pointing words
- **GR-4** — Person-neutral drafting
- **GR-5** — Latin, revisited
- **GR-6** — Doublets, and why some survive
- **GR-7** — Negation
- **GR-8** — Numbers that are also standards
- **GR-9** — Markers of machine prose
- **GR-10** — Defined-term drift
- **GR-11** — Presupposition

**Rule 11.1** — Restructure the sentence when a word-for-word replacement fails.

The dictionary gives approved alternatives for words that are not approved. Where an alternative has the same part of speech and the same meaning, substitute it. Frequently it will not, and then you must rewrite the sentence.

**Not CLW:** Compliance with the deadline is mandatory.

*A word-for-word substitution gives: Complying with the deadline is required. This is still a nominalization and still has no actor.*

**CLW:** A party must comply with the deadline.

**Not CLW:** Notification of the parties is required prior to the entry of judgment.

**CLW:** The clerk must notify each party before entering the judgment.

Rewriting a legal sentence carries a risk that rewriting a technical sentence does not: a new construction can change the legal effect. After every restructuring, check the sentence against Section 10. In particular, check whether the rewrite has supplied an actor, narrowed a class, strengthened an operator, or resolved an ambiguity.

**Rule 11.2** — Use the same word for the same thing, every time.

This is the oldest rule in legal drafting and the one most often broken by good prose writers, whose training tells them to vary their vocabulary.

In law, varied vocabulary is evidence of varied meaning. Courts presume that a drafter who used two words meant two things. A restatement that calls the same document a *motion* in one sentence and an *application* in the next has invited an argument that the two are different.

**Not CLW:** The movant must file the motion. The petition must state the grounds for relief. The application must be served on each party.

**CLW:** The movant must file the motion. The motion must state the grounds for relief. The movant must serve the motion on each party.

The repetition is intentional and correct. Do not use a pronoun where a repeated noun is clearer, and never use a pronoun that could refer to more than one antecedent.

**Not CLW:** The clerk must file the notice with the court and serve it on the parties. It must be dated. (What must be dated?)

**CLW:** The clerk must file the notice with the court and serve the notice on each party. The notice must be dated.

The rule applies across a document, and across a family of documents. Where a publisher restates a whole title of a code, the terminology decisions are made once and applied throughout.

**Rule 11.3** — Do not use a phrasal verb.

A phrasal verb is a verb plus a preposition or an adverb. It usually carries a meaning that neither part carries alone, and often carries two meanings, one concrete and one abstract.

| Not CLW         | CLW            |
|-----------------|----------------|
| set forth       | state          |
| set out         | state, list    |
| carry out       | perform, do    |
| put forward     | propose, offer |
| bring about     | cause          |
| lay down        | state, require |
| take up         | consider, hear |
| hand down       | issue          |
| turn on         | depend on      |
| do away with    | repeal, end    |
| come into force | take effect    |

**Not CLW:** The requirements set forth in subsection (b) shall be carried out by the applicant.

**CLW:** The applicant must meet the requirements in subsection (b).

**Exceptions.** Some phrasal constructions are terms of art: *hand down* (an opinion), *hold over* (a tenancy), *set aside* (a judgment), *strike down* (a statute). Preserve these where the source uses them (Rule 2.3).

## General recommendations

The general recommendations are not rules. They record traps that recur in legal drafting.

## GR-1 — “Shall” and its history

*Shall* entered legal English as a marker of futurity and acquired a mandatory sense by convention rather than by grammar. By the twentieth century, drafters were using it for four different jobs at once, and courts began construing it case by case.

The result is a word that a drafter uses to *avoid* deciding what the text requires. A drafter who writes *the court shall have jurisdiction* has not said whether jurisdiction is conferred, described, or required; a drafter who writes *the court has jurisdiction* has.

Modern federal drafting practice has largely abandoned *shall*. The restyled Federal Rules of Civil Procedure, Criminal Procedure, Evidence, and Appellate Procedure replaced it throughout with *must*, *may*, and the present indicative. Rule 3.2 follows that practice.

Two cautions.

First, the restyling projects were explicitly stylistic and were accompanied by statements that no substantive change was intended. When you restate a *pre-restyling* text, the mapping is not free — it is a construction, and Rule 10.7 requires you to record it.

Second, *shall* remains in force in a very large body of unrestyled law. Do not treat a *shall* in a live statute as a drafting error to be corrected. Restate it under Rule 10.7 and quote it under Rule 2.7.

## GR-2 — The canons that do not save you

Two canons of construction address the reach of a modifier over a series, and they point in opposite directions.

- The **rule of the last antecedent** holds that a modifier reaches only the item immediately before it.
- The **series-qualifier canon** holds that a modifier at the start or end of a parallel series reaches every item.

Courts apply both, choose between them by context, and reach different results on similar text. A drafter who relies on either has left the outcome to a coin flip.

Rule 9.4 therefore requires restructuring rather than reliance. When you draft, write the sentence so that neither canon is needed. When you restate, do not apply a canon to resolve the source’s ambiguity — that is construction, and Rule 10.4 forbids it.

**GR-3 — “Such” and “said” as pointing words**

*Such* used as a demonstrative (*such notice, such party*) and *said* used as an adjective (*said motion*) are pointing words that do not point precisely. Where a paragraph mentions two notices, *such notice* is ambiguous.

Use *the* with a repeated noun, or *that* with a specific antecedent.

■ **Not CLW:** The clerk must send notice to each party. Such notice must be dated.

■ **CLW:** The clerk must send a notice to each party. The notice must be dated.

*Such* is correct in its ordinary senses: *such as*, and *such ... that*.

**GR-4 — Person-neutral drafting**

Do not use *he, she, his, her, him, himself, or herself* in text that you draft. Do not use *he or she*, which is clumsy and excludes.

Four techniques, in order of preference:

1. **Repeat the noun.** *A party must file the party's brief.* Or better, *A party must file a brief.*
2. **Use the role.** *the movant, the appellant, the clerk, the applicant.*
3. **Rewrite in the plural**, but only where Rule 6.1 permits it.
4. **Use singular *they***, where the governing drafting manual allows it. Some do not.

Do not use *he* in a restatement of a source that uses *he*. Use the role instead, and note the source's language if it matters.

■ **Source:** “...the judge shall state his findings...”

■ **CLW:** The judge must state the judge's findings.

■ **CLW:** The judge must state findings.

Preserve gendered language in quoted text (Rule 2.7). Do not modernize a quotation and do not mark it with *[sic]*.

**Do not read a gendered pronoun in an older source as a limitation.** Many jurisdictions provide, by code or by drafting convention, that the masculine includes the feminine. A statute that says *he* is generally not confined to men. A restatement that implied otherwise would narrow the provision, which Rule 10.2 forbids as an addition and Rule 10.6 forbids as a change to the class.

Use the role in the restatement, preserve the pronoun in quotation, and check the governing construction rule before treating gendered wording as substantive.

**GR-5 — Latin, revisited**

The distinction in Rule 1.7 is between Latin that names a legal concept and Latin that is a Latin word for an English one. The test is whether an English equivalent would carry the same legal content.

*Res judicata* has no English equivalent. *Claim preclusion* is close and is increasingly used, but the two are not interchangeable in every jurisdiction and *res judicata* is sometimes used as the umbrella for both claim and issue preclusion. Follow the source (Rule 2.3).

*Inter alia* has an exact English equivalent — *among others* — and no term-of-art content. Do not use it.

A useful check: if *Black's Law Dictionary* gives the term a legal definition, it is probably a term of art. If a general dictionary gives it a plain translation and no legal sense, it is probably decoration.

**GR-6 — Doublets, and why some survive**

The doublets in legal English came from three sources. Old English, Norman French, and Latin layered after 1066. Some early scribes were paid by the word. And drafters copied forms without asking what the words did.

Most are dead weight. A few have been construed, and once a court has held that *aid* and *abet* describe different conduct, splitting the doublet in a restatement drops content.

The practical rule:

- **Drafting new text:** write one word (Rule 1.6).
- **Restating existing text:** keep the doublet (Rule 10.3).
- **Uncertain whether a doublet has been construed:** keep it. The cost of keeping a redundant word is one word. The cost of dropping a construed one is a changed rule.

**GR-7 — Negation**

Legal negation fails in three ways.

**Wrong operator.** Rule 3.3.

**Double negation.** *No party may fail to appear* requires two inversions to parse. Write the affirmative.

**Scope.** *All parties must not object* and *not all parties must object* are different statements, and the first is ambiguous between “no party may object” and “it is not required that all parties object.”

Put the negation on the operator, not on the subject or the object.

- **Not CLW:** No filing may be made without a certificate.
- **CLW:** A party must not file without a certificate.
- **Not CLW:** Nothing in this rule shall be construed to limit the court’s authority.
- **CLW:** This rule does not limit the court’s authority.

## GR-8 — Numbers that are also standards

Some numeric expressions in legal text are not numbers. *Substantially all, a majority, a supermajority, reasonable notice, promptly, forthwith, within a reasonable time* look quantitative and are standards.

When you draft, choose. Write *30 days*, not *promptly*, unless the flexibility is deliberate.

When you restate, never convert a standard into a number.

- **Source:** “...promptly after entry of the order...”
- **Not CLW:** ...within a few days after the order is entered...
- **CLW:** ...promptly after the order is entered...

*Forthwith* is worth a separate warning. Courts have construed it as anything from “immediately” to “within a reasonable time.” Do not use it in new drafting. Preserve it in a restatement and flag it under Rule 10.4.

## GR-9 — Markers of machine prose

Restatements produced with the aid of a language model tend to carry a set of tics. They are worth eliminating for three reasons: they are padding, they often smuggle in interpretation, and they make text recognizable as unedited machine output, which damages a publisher’s credibility.

Do not write:

- **A sentence-initial connective in operative text.** Rule 4.5 already forbids this at R1.
- **An opening that announces the text.** Rule 7.6.
- **A closing synthesis.** Rule 7.6.
- **An “It’s not just X, it’s Y” construction.** This is always a characterization and usually an interpretation.
- **A tricolon** — three parallel items where the source has two, or one. Match the source’s structure.
- **An em dash used to append an afterthought.** Use a period, or a separate sentence.
- **A hedged universal:** *generally, typically, usually, in most cases, often*. Rule 10.4 forbids these where they stand in for an unstated ambiguity.
- **An evaluative adjective:** *important, critical, key, crucial, significant, robust, comprehensive*. These characterize the source.
- **A rhetorical question.**

- **A bulleted list where the source has flowing text**, unless the source's content is genuinely enumerated. A list implies discreteness that prose may not have.

The last is the most consequential. Converting a source's continuous prose into a list of four items tells the reader that there are exactly four things, and the source may not say that.

### GR-10 — Defined-term drift

Where an instrument defines a term, a restatement must track the definition exactly, and the failure mode is gradual. A writer introduces *Covered Entity* and uses it correctly for three paragraphs. Then comes *the entity*, then *the organization*. By the end there are three terms for one defined concept, and at least two are outside the definition.

Two safeguards.

**First**, build a term inventory before drafting: every defined term in the source, its exact form, and its scope. Use nothing else for that concept.

**Second**, check the inventory mechanically before publication. A defined term that appears in the source but nowhere in the restatement is a probable dropped-content failure (Rule 10.3). A near-synonym that appears in the restatement but nowhere in the source is a probable drift failure.

### GR-11 — Presupposition

Comprehension research on jury instructions isolated two features that predict how well a reader understands legal text. One is the passive verb, which Rule 3.5 addresses. The other is the **presupposed term** — a word used as though the reader already knows it.

A presupposed term is not the same as a hard term. It is any term deployed without introduction, where the sentence only works if the reader already carries the meaning. The reader who does not carry it cannot tell that anything is missing, which is what makes the failure invisible in review.

The words that do the most damage are the ones that look ordinary:

| Word     | Ordinary sense    | Legal sense                             |
|----------|-------------------|-----------------------------------------|
| party    | someone present   | a person named in the action            |
| service  | assistance        | formal delivery under a rule            |
| motion   | movement          | a formal request to a court             |
| finding  | something located | a determination of fact                 |
| material | physical stuff    | of a kind that would affect the outcome |

| Word   | Ordinary sense | Legal sense                                  |
|--------|----------------|----------------------------------------------|
| person | a human being  | often an entity, where the source defines it |

A reader who takes the left-hand column reads a different rule and has no way to know.

Rule 2.8 requires a gloss at R3 and R4 and a signal at every register. This recommendation says how to find what needs one. Read the draft as a reader who knows no law, and mark every word that would carry a different meaning to them. Those are the presupposed terms. They are rarely the words a lawyer would have flagged.

Part 3 makes both checks part of the verification procedure.

# Part 2 — Dictionary

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## Introduction to the dictionary

### General

The dictionary controls **general vocabulary only**. It does not control legal vocabulary, which Section 2 governs through preserved-term categories.

This is the sharpest structural difference between CLW and a controlled language for technical documentation. A technical dictionary can aim at completeness, because a technical writer's whole vocabulary is either general words or a bounded set of part names. A legal dictionary cannot, because the vocabulary of law is open, jurisdiction-specific, and constantly enlarged by courts. An attempt to enumerate approved legal terms would be obsolete on publication. It would also tempt writers to substitute an approved near-synonym for a term of art, which is the exact failure Rule 2.2 forbids.

The dictionary is therefore deliberately small. Its job is the connective tissue of a sentence: the verbs, prepositions, conjunctions, and general nouns that a writer chooses freely and therefore should choose consistently.

### Conventions

- Approved words and words that are not approved are given in **separate tables**, each under its own heading. Status is never shown by capitalization.
- Every word is given in its natural case. This standard does not use capitalization as a signal, because in legal writing capitalization is itself meaningful: it is how a defined term announces itself (Rule 2.4). A dictionary that set its entries in capitals could not show the difference between *party* and *Party*.
- For the same reason, example sentences are given in ordinary sentence case, exactly as a writer would set them.
- The part of speech follows the word in parentheses: *n* (noun), *v* (verb), *adj* (adjective), *adv* (adverb), *prep* (preposition), *conj* (conjunction), *pron* (pronoun), *art* (article).
- **(PT)** marks an alternative that is a preserved term (Section 2) rather than a dictionary word.
- Verbs are given with the forms permitted. Do not use a form that is not given.
- Adjectives are given in base form. Comparative and superlative forms are permitted where they exist, except where a note says otherwise.
- Nouns are given in the singular. The plural is permitted, subject to Rule 6.1.

*Capitals appear in this standard in three places only: a proper noun, an acronym, and a literal token in the proposition ledger (Part 3), such as AGENT UNSTATED. Ledger tokens are field values in a record, not words in a text.*

## Categories

The dictionary has five categories:

- **Category A — Preserved terms.** Not a word list. The categories in Rule 2.1.
- **Category B — Prohibited legalese.** Words that must not be used at all, with replacements. Annex B gives the full table.
- **Category C — Modal and deontic vocabulary.** The closed operator set. Rule 3.1.
- **Category D — Connective and structural vocabulary.** The closed connective set. Rule 4.5.
- **Category E — Core word list.** General vocabulary.

## Category C — Modal and deontic vocabulary

This category is **closed**. No word may be added by a writer, a project, or a publisher's house style. It contains exactly the seven operators in Rule 3.1.

| Word<br>(part of<br>speech) | Approved meaning                                                                     | CLW example                                                            | Not-CLW example                                                         |
|-----------------------------|--------------------------------------------------------------------------------------|------------------------------------------------------------------------|-------------------------------------------------------------------------|
| <b>must (v)</b>             | Imposes a duty. Failure to act is a violation.                                       | The appellant must file the brief within 40 days.                      | The appellant shall file the brief within 40 days.                      |
| <b>must not (v)</b>         | Imposes a prohibition. Acting is a violation.                                        | A party must not file a brief longer than 30 pages.                    | No party shall file a brief exceeding 30 pages.                         |
| <b>may (v)</b>              | Confers discretion or permission. Neither acting nor not acting is a violation.      | The court may extend the deadline.                                     | The court is permitted to extend the deadline.                          |
| <b>may not (v)</b>          | Withholds authority. The actor has no power to act.                                  | The court may not suspend a statutory time limit.                      | The court shall not have authority to suspend a statutory time limit.   |
| <b>is entitled to (v)</b>   | Confers a right that another party must satisfy.                                     | The prevailing party is entitled to costs.                             | The prevailing party shall have the right to costs.                     |
| <b>need not (v)</b>         | Negates a duty. The actor may act but is not required to.                            | A party need not attach the exhibits.                                  | A party is not obligated to attach the exhibits.                        |
| <b>will (v)</b>             | States a consequence that follows automatically, without anyone exercising judgment. | If no party objects, the order will take effect on the fourteenth day. | If no party objects, the order shall take effect on the fourteenth day. |

**Not approved.**

| Word (part of speech) | Alternatives                     | Note                                                                                    |
|-----------------------|----------------------------------|-----------------------------------------------------------------------------------------|
| shall (v)             | must, may, will, or delete       | Rule 3.2, GR-1. Preserve in quoted text.                                                |
| shall not (v)         | must not, may not                | The two are not the same. Rule 3.3.                                                     |
| should (v)            | must, or restate                 | Not operative at any register. Where a source uses it, do not map. Rule 3.1, Rule 10.7. |
| ought to (v)          | must, or restate                 |                                                                                         |
| is required to (v)    | must                             |                                                                                         |
| is obligated to (v)   | must                             |                                                                                         |
| is directed to (v)    | must                             |                                                                                         |
| it is the duty of     | must, with a named actor         | Rule 3.4.                                                                               |
| is permitted to (v)   | may                              |                                                                                         |
| has the right to (v)  | is entitled to                   |                                                                                         |
| can (v)               | may, or is able to               | <i>Can</i> conflates permission with capacity.                                          |
| might (v)             | Restate. Do not use an operator. | Rule 3.1.                                                                               |
| could (v)             | Restate. Do not use an operator. |                                                                                         |
| would (v)             | Restate. Do not use an operator. |                                                                                         |
| no person shall       | a person must not                | Put the negation on the operator. GR-7.                                                 |

## Category D — Connective and structural vocabulary

This category is **closed** for R1 operative text and **open with approval** for R2, R3, and R4.

### Approved connectives.

*after, and, as a result, at the same time, because, before, but, except, for this reason, however, if, in that case, only if, or, that, then, therefore, unless, until, when, whenever, which, while.*

### Notes on individual connectives.

| Word                      | Approved meaning                                                | Note                                                                  |
|---------------------------|-----------------------------------------------------------------|-----------------------------------------------------------------------|
| <b>and (conj)</b>         | Conjunctive. Every item applies.                                | Never write <i>and/or</i> . Rule 9.3.                                 |
| <b>or (conj)</b>          | Disjunctive, inclusive. One or more items apply.                | For exclusive disjunction, write <i>either A or B, but not both</i> . |
| <b>if (conj)</b>          | Introduces a condition that may or may not occur.               | Rule 5.1.                                                             |
| <b>when (conj)</b>        | Introduces a condition that will occur. The question is timing. | Do not use for a condition that may not occur.                        |
| <b>whenever (conj)</b>    | Introduces a condition that may occur more than once.           | Refer to Rule 5.1.                                                    |
| <b>where (conj)</b>       | Place only.                                                     | Never a condition. Use <i>if</i> . Refer to Rule 5.1.                 |
| <b>that (pron)</b>        | Introduces a restrictive clause. Takes no commas.               | Refer to Rule 9.9.                                                    |
| <b>which (pron)</b>       | Introduces a non-restrictive clause. Set off by commas.         | Refer to Rule 9.9.                                                    |
| <b>unless (conj)</b>      | Introduces a negative condition.                                | Do not stack with another negative. GR-7.                             |
| <b>until (prep, conj)</b> | Up to a stated time or event. Does not include the event.       | Where inclusion matters, state it: <i>until and including</i> .       |
| <b>only if</b>            | The condition is necessary.                                     | Not the same as <i>if</i> , which states sufficiency.                 |
| <b>except (prep)</b>      | Removes an item from a class.                                   | Name what is excepted. Rule 5.3.                                      |
| <b>however (adv)</b>      | Contrast.                                                       | Do not begin an R1 sentence with it. Rule 4.5.                        |
| <b>after (prep)</b>       | Later in time than. Excludes the trigger day unless stated.     | Rule 9.6.                                                             |
| <b>before (prep)</b>      | Earlier in time than.                                           | Rule 9.6.                                                             |
| <b>within (prep)</b>      | Inside a stated period.                                         | Must be paired with a trigger and a direction. Rule 9.6.              |

**Not approved.**

| Word                | Alternatives                                       |
|---------------------|----------------------------------------------------|
| and/or              | <i>A or B, or both.</i> Rule 9.3.                  |
| provided that       | Restate as a condition or an exception. Rule 5.4.  |
| provided however    | Restate. Rule 5.4.                                 |
| notwithstanding     | Permitted only with a specific citation. Rule 5.4. |
| subject to          | Permitted only with a specific citation. Rule 5.4. |
| in the event that   | if                                                 |
| in the event of     | if                                                 |
| for the purpose of  | to                                                 |
| in order to         | to                                                 |
| with respect to     | about, for, under                                  |
| in accordance with  | under                                              |
| pursuant to         | under                                              |
| prior to            | before                                             |
| subsequent to       | after                                              |
| at such time as     | when                                               |
| during such time as | while                                              |
| in the case where   | if                                                 |
| by reason of        | because of                                         |
| by virtue of        | under                                              |
| in relation to      | about                                              |
| as regards          | about                                              |
| in the absence of   | if there is no                                     |
| on the part of      | by                                                 |
| for the duration of | during                                             |

## Category E — Core word list

This list gives general vocabulary. It is not complete and is expected to grow. Additions are made through the change form (Annex C).

### Approved words

| Word (part of speech)                       | Approved meaning                           | CLW example                                                  |
|---------------------------------------------|--------------------------------------------|--------------------------------------------------------------|
| about (prep)                                | Concerned with                             | The motion is about the scope of discovery.                  |
| add (v), adds, added, added                 | To put a thing with another thing          | A party who serves by mail must add three days.              |
| agree (v), agrees, agreed, agreed           | To be of the same view                     | The parties agree on the facts.                              |
| allow (v), allows, allowed, allowed         | To let a thing happen                      | The rule allows 21 days.                                     |
| answer (v), answers, answered, answered     | To respond to a pleading                   | The defendant must answer within 21 days.                    |
| apply (v), applies, applied, applied        | 1. To have effect on. 2. To make a request | This rule applies to every appeal.                           |
| approve (v), approves, approved, approved   | To agree formally to                       | The court must approve the settlement.                       |
| ask (v), asks, asked, asked                 | To make a request                          | <i>R3 and R4 only. At R1 and R2, use move (PT) or apply.</i> |
| begin (v), begins, began, begun             | To start                                   | The period begins when the clerk enters the judgment.        |
| change (v), changes, changed, changed       | To make different                          | The court may change the schedule.                           |
| cite (v), cites, cited, cited               | To refer to an authority                   | The brief must cite the record.                              |
| contain (v), contains, contained, contained | To have inside                             | The motion must contain a statement of the issues.           |
| decide (v), decides, decided, decided       | To reach a conclusion                      | The court must decide the motion within 30 days.             |
| deliver (v), delivers, delivered, delivered | To hand over                               | <i>Do not use for serve (PT), which is a term of art.</i>    |
| end (v), ends, ended, ended                 | To stop                                    | The period ends on the thirtieth day.                        |

| Word (part of speech)                     | Approved meaning                                                            | CLW example                                                    |
|-------------------------------------------|-----------------------------------------------------------------------------|----------------------------------------------------------------|
| enter (v), enters, entered, entered       | To record on the docket                                                     | The clerk must enter the judgment.                             |
| extend (v), extends, extended, extended   | To make longer in time                                                      | The court may extend the period.                               |
| file (v), files, filed, filed             | To submit a document to a court                                             | A party must file the notice within 30 days.                   |
| find (v), finds, found, found             | To determine a question of fact                                             | The court found that the party acted in bad faith.             |
| give (v), gives, gave, given              | To supply                                                                   | The court must give notice to each party.                      |
| grant (v), grants, granted, granted       | To allow a request                                                          | The court may grant the motion.                                |
| hold (v), holds, held, held               | 1. To decide a question of law. 2. To conduct a proceeding                  | The court held that the statute was ambiguous.                 |
| include (v), includes, included, included | To have as part of a larger set. Does not close the set. Refer to Rule 2.9. | The record includes the transcript.                            |
| know (v), knows, knew, known              | To have knowledge of                                                        | <i>Distinguish from knowing (PT), a mental-state standard.</i> |
| limit (v), limits, limited, limited       | To set a boundary on                                                        | This rule does not limit the court's authority.                |
| list (v), lists, listed, listed           | To set out as separate items                                                | The motion must list each ground for relief.                   |
| mean (v), means, meant, meant             | To have as a definition. Closes the set. Refer to Rule 2.9.                 | "Party" means a person named in the complaint.                 |
| notify (v), notifies, notified, notified  | To tell formally                                                            | The clerk must notify each party.                              |
| pay (v), pays, paid, paid                 | To give money owed                                                          | The appellant must pay the filing fee.                         |
| receive (v), receives, received, received | To take a thing that is given                                               | The clerk received the filing on March 3, 2026.                |
| reject (v), rejects, rejected, rejected   | To refuse to accept                                                         | The clerk may reject a filing that does not comply.            |
| require (v), requires,                    | To make necessary. <i>Use only</i>                                          | The rule requires a certificate of service.                    |

| Word (part of speech)                       | Approved meaning                                             | CLW example                                            |
|---------------------------------------------|--------------------------------------------------------------|--------------------------------------------------------|
| required, required                          | <i>to describe what a source does, not to impose a duty.</i> |                                                        |
| respond (v), responds, responded, responded | To reply                                                     | A party may respond within 14 days.                    |
| review (v), reviews, reviewed, reviewed     | To examine formally                                          | The panel must review the record.                      |
| send (v), sends, sent, sent                 | To cause a thing to go to a person                           | <i>Do not use for serve (PT).</i>                      |
| set (v), sets, set, set                     | To fix or establish                                          | The court must set a hearing date.                     |
| show (v), shows, showed, shown              | To establish by evidence or argument                         | The movant must show good cause.                       |
| sign (v), signs, signed, signed             | To put a signature on                                        | Each party must sign the stipulation.                  |
| state (v), states, stated, stated           | To express in words                                          | The motion must state the relief sought.               |
| take effect (v)                             | To become operative                                          | This rule takes effect on January 1, 2027.             |
| use (v), uses, used, used                   | To employ for a purpose                                      | The party may use the form in the appendix.            |
| applicable (adj)                            | That applies                                                 | The applicable period is 30 days.                      |
| available (adj)                             | That can be obtained or used                                 | The form is available on the court's website.          |
| each (adj)                                  | Every one, taken individually                                | Each party must file a separate brief.                 |
| joint (adj)                                 | Done by two or more together                                 | The parties must file a joint report.                  |
| late (adj)                                  | After the applicable time                                    | A late notice does not preserve the appeal.            |
| separate (adj)                              | Not joined                                                   | Each party must file a separate brief.                 |
| timely (adj)                                | Within the applicable period                                 | The court may consider a timely objection.             |
| written (adj)                               | In writing                                                   | The party must give written notice.                    |
| day (n)                                     | A period of 24 hours                                         | <i>Computation is governed by the applicable rule.</i> |

| Word (part of speech) | Approved meaning                             | CLW example                                                |
|-----------------------|----------------------------------------------|------------------------------------------------------------|
| deadline (n)          | The last time at which an act may be done    | <i>R3 and R4 only. At R1 and R2, state the period.</i>     |
| document (n)          | A written or recorded item                   | The party must serve the document on each party.           |
| fee (n)               | Money charged for a service                  | The appellant must pay the filing fee.                     |
| form (n)              | A document with a fixed structure            | The party may use Form 4.                                  |
| notice (n)            | Information given formally                   | The court must give notice to each party.                  |
| period (n)            | A length of time                             | The period is 30 days.                                     |
| person (n)            | An individual or an entity                   | <i>Where a source defines “person,” Rule 2.4 controls.</i> |
| record (n)            | The documents and transcript of a proceeding | The clerk must transmit the record.                        |
| requirement (n)       | A thing that must be done                    | The motion meets each requirement in subsection (B).       |

### Words that are not approved

| Word (part of speech) | Alternatives                          | CLW example                                                     | Not-CLW example                                                   |
|-----------------------|---------------------------------------|-----------------------------------------------------------------|-------------------------------------------------------------------|
| aforesaid (adj)       | the, or name the thing                | The motion must be verified.                                    | The aforesaid motion shall be verified.                           |
| commence (v)          | begin, or file (for an action)        | The period begins on the date of service.                       | The period shall commence on the date of service.                 |
| deem (v)              | Restate. Say what is treated as what. | A filing made after 5 P.M. Is treated as filed on the next day. | A filing made after 5 p.m. Shall be deemed filed on the next day. |
| effectuate (v)        | do, carry out — perform               | The clerk must perform the transfer.                            | The clerk shall effectuate the transfer.                          |
| endeavor (v)          | try                                   | The parties must try to agree.                                  | The parties shall endeavor to reach agreement.                    |
| evidence (v)          | show                                  | The record shows that notice was given.                         | The record evidences that notice was given.                       |

| Word (part of speech)    | Alternatives                                       | CLW example                                                   | Not-CLW example                                  |
|--------------------------|----------------------------------------------------|---------------------------------------------------------------|--------------------------------------------------|
| forthwith (adv)          | restate with a stated period, or preserve and flag | <i>Do not use in new drafting.</i><br>GR-8.                   | The clerk shall act forthwith.                   |
| furnish (v)              | give                                               | The party must give a copy to each party.                     | The party shall furnish a copy to each party.    |
| herein (adv)             | in this rule, or cite the provision                | The period in subsection (B) applies.                         | The period specified herein shall apply.         |
| hereinafter (adv)        | name the thing at first use                        | The Federal Rules of Appellate Procedure (the Rules)          | ...hereinafter referred to as the Rules...       |
| indicate (v)             | state, show                                        | The form must state the date of service.                      | The form shall indicate the date of service.     |
| initiate (v)             | begin, file                                        | A party may file an action.                                   | A party may initiate an action.                  |
| in the event that        | if                                                 | If the party does not respond, the court may enter a default. | In the event that the party fails to respond...  |
| obtain (v)               | get, or restate                                    | The party must get leave of court.                            | The party shall obtain leave of court.           |
| prior to (prep)          | before                                             | The party must file before the hearing.                       | The party shall file prior to the hearing.       |
| pursuant to (prep)       | under                                              | The court may act under Rule 60(B).                           | The court may act pursuant to Rule 60(b).        |
| said (adj)               | the, or name the thing                             | The motion must be verified.                                  | Said motion shall be verified.                   |
| set forth (v)            | state, list                                        | The motion must state the grounds.                            | The motion shall set forth the grounds.          |
| subsequent to (prep)     | after                                              | The party must file after the hearing.                        | The party shall file subsequent to the hearing.  |
| such (adj, as a pointer) | the, that, or name the thing                       | The notice must be dated.                                     | Such notice shall be dated.                      |
| terminate (v)            | end                                                | The stay ends when the court enters judgment.                 | The stay shall terminate upon entry of judgment. |
| thereafter (adv)         | after that, or name                                | After the clerk enters the                                    | Thereafter, a party may                          |

| Word (part of speech) | Alternatives                               | CLW example                         | Not-CLW example                                              |
|-----------------------|--------------------------------------------|-------------------------------------|--------------------------------------------------------------|
|                       | the event                                  | judgment, a party may appeal.       | appeal.                                                      |
| thereof (adv)         | of it, or name the thing                   | The court may extend the period.    | The court may extend the period thereof.                     |
| transmit (v)          | send, or preserve where the source uses it | The clerk must send the record.     | <i>Preserve transmit where the source uses it. Rule 2.3.</i> |
| upon (prep)           | on, after, when                            | After the clerk enters the judgment | Upon entry of judgment                                       |
| utilize (v)           | use                                        | The party may use the form.         | The party may utilize the form.                              |
| whereas (conj)        | delete, or state the fact                  | The parties agree as follows:       | Whereas, the parties desire to...                            |
| with respect to       | about, for, under                          | The rule about discovery            | The rule with respect to discovery                           |

## Part 3 — Conformance and verification

---

Conformance to Part 1 can be checked by reading. Conformance to Section 10 cannot. A restatement that reads perfectly may have dropped a condition. Rereading does not reliably catch this. A reader who has just written the restatement reads the source through it.

Part 3 gives the procedure.

---

### Conformance levels

| Level                       | Requires                                                     | Suitable for                                                         |
|-----------------------------|--------------------------------------------------------------|----------------------------------------------------------------------|
| <b>Level 1 — Style</b>      | Part 1, Sections 1 through 9 and 11.                         | Original drafting. Internal memoranda. Marketing and reference copy. |
| <b>Level 2 — Controlled</b> | Level 1, plus Part 2.                                        | Original drafting of operative text. House-authored commentary.      |
| <b>Level 3 — Verified</b>   | Level 2, plus Section 10 and a completed proposition ledger. | Any published restatement of an authoritative text.                  |

A published restatement must be Level 3. Nothing below Level 3 may be labeled as a restatement or published alongside a source text.

State the conformance level in the document's metadata, together with the register (Rule 7.1).

---

### Blocking and advisory failures

The rules in this standard do not all protect the same thing. Rule 10.2 protects what the text says. Rule 9.2 protects how it reads. A conformance check that treats a failure of each as equally disqualifying rejects sound work over prose, and it teaches a drafter to weigh a semicolon against a misstated deadline.

A failure is **blocking** where it changes what the text says, or conceals that something is unsaid:

- Any failure of Section 10.
- A reconstruction divergence (Part 3, Step 6).
- An operator outside the approved set, or a negation that inverts the provision (Rules 3.1, 3.3).
- A paraphrased legal standard, test, or threshold (Rule 2.2).
- A dropped quantifier, connector, or exclusivity word (Rule 10.8).
- An ambiguity resolved, left unmarked, or covered by a hedge (Rule 10.4).
- A serial comma, an *and/or*, or a modifier whose reach is unclear, where the omission creates an ambiguity the source does not have (Rules 9.1, 9.3, 9.4).
- An actor supplied, narrowed, or dropped (Rule 10.6).

A failure is **advisory** where the text still says the same thing. Sentence length, punctuation, archaic wording, nominalizations, phrasal verbs, doublets, and terminology preference are advisory.

A blocking failure prevents conformance at every level. An advisory failure is recorded against the document and queues it for editorial review. It does not prevent publication.

**Where a rule falls in neither list, apply this test.** Would a reader relying on the text be misled? If the answer is yes, the failure blocks.

This distinction governs conformance, not drafting. A drafter follows every rule. The severity of a failure is a question for the reviewer who finds one.

## The proposition ledger

The ledger is the artifact that makes equivalence checkable. It is built before the restatement is drafted, not after.

### Step 1 — Decompose the source

Break the source into atomic propositions. A proposition is atomic when it cannot be split without losing a legal element. Each proposition records:

| Field            | Content                                            |
|------------------|----------------------------------------------------|
| ID               | A stable identifier: 4a-P03                        |
| Source locus     | The smallest cited unit: Rule 4(a)(1)(A)           |
| Actor            | Who acts, or NONE STATED                           |
| Operator         | The source's operator, verbatim                    |
| Action           | The act required, permitted, or forbidden          |
| Object           | What the act applies to                            |
| Conditions       | Every condition, listed separately                 |
| Quantifiers      | <i>each, any, only, at least</i> , and so on       |
| Connector        | How this proposition joins others: AND, OR, NONE   |
| Consequence      | The stated consequence, or NONE STATED             |
| Cross-references | Every provision cited                              |
| Flags            | AMBIGUOUS, AGENT UNSTATED, OPERATOR CONTESTED, GAP |

Decompose from the source text alone. Do not consult a draft restatement, a headnote, or a treatise while decomposing. Consulting one anchors the decomposition to someone else's reading.

## Step 2 — Draft the restatement

Draft under Part 1, at the declared register.

## Step 3 — Map forward

For each proposition in the ledger, identify the sentence or sentences in the restatement that carry it.

- A proposition with no mapping is **dropped content**. Rule 10.3.
- A proposition mapped to a sentence that changes its operator, actor, quantifier, or condition is **altered content**. Rules 10.6, 10.7, and 10.8.
- A proposition flagged **AMBIGUOUS**, **AGENT UNSTATED**, or **GAP** must map to a sentence that marks it. Rule 10.4.

## Step 4 — Map backward

For each sentence in the restatement, identify the proposition it carries.

- A sentence with no mapping is **added content**. Rule 10.2.
- A sentence that carries part of a proposition and part of the writer's inference is added content.

The backward map is the harder one and catches the errors the forward map misses. Do it separately, and preferably on a different day.

## Step 5 — Record the result

The ledger is retained. It is the evidence that verification occurred. It is also the starting point when the source is amended. An amendment usually changes a small number of propositions, and the ledger identifies which restatement sentences are affected.

## Step 6 — Reconstruct blind

The bidirectional map in Steps 3 and 4 is performed by someone holding the source. That is its weakness. A checker who has read the source reads the restatement against it, and a proposition the restatement never carried can look present because the checker supplies it from memory.

Blind reconstruction removes the source from the checker's hands.

1. Give a reader the restatement, and nothing else.
2. Ask the reader to write what the source must have said: every duty, every condition, every actor, every period, every consequence.
3. Compare the reconstruction against the real source.

A **divergence** is any proposition the reconstruction states that the source does not, or any proposition the source states that the reconstruction could not recover. Each one is a defect in the restatement, not in the reconstruction.

The reconstruction is not published and is not the restatement. It is a probe.

A **reconstruction that recovers the source exactly proves nothing on its own**. It shows the restatement carries enough to rebuild the source. It does not show the restatement says only what the source says; Step 4 does that.

Where a language model performs this step, it must be a separate call. A model that has seen the source in this conversation is not blind to it, whatever the prompt says.

## Constraint on model-assisted checking

Where a language model assists with any step:

- The model must not see the restatement while decomposing the source.
- The model must not see the ledger while drafting.
- Forward mapping and backward mapping must be separate calls with no shared context.
- Blind reconstruction must be a separate call that has never received the source.
- A model's agreement is not verification. A model that drafted a sentence will find that sentence faithful.
- A human reviewer signs the ledger.

The reason is anchoring. A checker that has seen the draft will read the source to confirm the draft.

---

## Mechanical checks

Run these before review. They are cheap and they catch a substantial share of failures.

### Style checks (Level 1).

1. No sentence exceeds the register's limit under Rule 4.1, counted under Rule 9.7.
2. No prohibited word from Category B or Annex B appears outside a quotation.
3. No word outside Category C is used as a normative operator.
4. No semicolon appears outside a quotation or a reproduced series.
5. No **and/or** appears outside a quotation.
6. No contraction appears.
7. Every list of three or more items has a serial comma outside quotations.
8. No Latin abbreviation from the Rule 1.7 table appears.
9. No sentence-initial connective appears in R1 text.

### Fidelity checks (Level 3).

10. Every citation in the source appears in the restatement, in the same form.
11. Every numeral in the source appears in the restatement, or its absence is explained.

- 12. Every defined term in the source appears in the restatement in its exact form, and no near-synonym for a defined term appears.
- 13. Every quantifier in the source (*each, any, all, only, at least, no more than*) appears in the restatement.
- 14. The count of **AND** and **OR** connectors between propositions matches.
- 15. Every subsection designation in the source appears in the restatement, in the source’s order.
- 16. Every proposition flagged **AMBIGUOUS**, **AGENT UNSTATED**, or **GAP** maps to a marking sentence.
- 17. No sentence in the restatement contains an operator stronger than the source’s.

Checks 10 through 17 can be automated against the ledger.

## Version binding

Every Level 3 document records:

| Field                | Example value                        |
|----------------------|--------------------------------------|
| source_citation      | Fed. R. App. P. 2                    |
| source_version       | Effective 2024-12-01                 |
| source_sha256        | (hash of the exact source text used) |
| restatement_register | R3                                   |
| conformance_level    | 3                                    |
| ledger_id            | frap-002-r3-v1                       |
| verified_on          | 2026-08-27                           |
| verified_by          | (name)                               |

The hash is computed over the source text as retrieved, normalized only for line endings. Storing the hash makes an amendment detectable automatically: re-fetch the source, re-hash, compare.

Where a source has a known amendment cycle, schedule re-verification against it. The Federal Rules of Civil Procedure, Criminal Procedure, Appellate Procedure, Bankruptcy Procedure, and Evidence take effect on December 1 in most years, and proposed amendments are published the preceding August.

A document whose source hash no longer matches is marked unverified until re-verification is complete. It is not silently republished.

## Review

A Level 3 document is reviewed by a person who did not draft it.

The reviewer works from the source and the ledger, and reads the restatement last. The reviewer's task is not to improve the prose. It is to answer two questions:

1. Does the restatement say anything the source does not say?
2. Does the source say anything the restatement does not say?

A reviewer who finds a fidelity failure returns the document. A reviewer who finds only style failures may correct them, and must then re-run the forward and backward maps for every sentence changed.

# Annex A — Divergence from technical-writing controlled languages

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This annex records where CLW departs from the approach that controlled languages for technical documentation take, and why. It is informative, not normative.

The comparison is to the general approach of that family of standards, not to the text of any one of them.

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## The four structural divergences

### 1. The dictionary cannot control the domain vocabulary

A technical controlled language controls the whole vocabulary: it approves a core list, permits domain terms in enumerated categories, and forbids everything else. It can do this because domain terms in engineering are names for objects, and an object has one name.

Legal domain terms are names for rules. They are:

- **Open.** Courts create new ones continuously.
- **Jurisdiction-specific.** *Demurrer* is live in some states and abolished in others.
- **Contested.** The content of *proximate cause* is itself litigated.
- **Non-substitutable.** No synonym carries the same body of law.

CLW therefore inverts the relationship. The dictionary is small and controls only general vocabulary. Legal vocabulary is handled by a **protection** mechanism (Section 2) rather than a **selection** mechanism. Rule 2.2 makes paraphrase of a legal standard a violation, which is the opposite of what a technical standard asks a writer to do.

### 2. Ambiguity is preserved, not removed

The stated purpose of a technical controlled language is to remove ambiguity so that a non-native reader cannot misread a maintenance instruction. Removing ambiguity is the job.

In a legal restatement, ambiguity in the source is content. A statute that does not say whether notice must be written has left a question open, and the answer belongs to a court. A writer who supplies it has legislated in a footnote.

Rule 10.4 therefore requires the writer to preserve and mark ambiguity. There is no analogue in a technical standard, and the divergence is philosophical rather than mechanical: the two standards want opposite things from the same sentence.

### 3. Fidelity requires an apparatus

A technical writer authors. There is no source text to be faithful to, so there is nothing for a technical standard to verify beyond conformance to its own rules.

A legal writer frequently restates. Section 10 and Part 3 exist for this: equivalence rules, a decomposition method, a bidirectional mapping procedure, mechanical checks, and version binding by hash. None of this has a counterpart in a technical controlled language, because none of it is needed there.

### 4. Modality is a closed system, not a vocabulary preference

A technical controlled language approves a handful of modal verbs and treats the choice among them as vocabulary control.

In law the operator *is* the provision. Whether a rule says *must* or *may* is the whole of what it does, and the difference between *must not* and *need not* is the difference between a prohibition and an option. Section 3 therefore treats operators as a closed, non-extensible system with mapping rules (Rule 10.7) and a documented decision trail.

---

## Rule-level crosswalk

| Subject              | Technical-standard approach                                                                                         | CLW approach                                                                                          | Reason                                                                        |
|----------------------|---------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------|
| Domain vocabulary    | Categories of permitted domain nouns and verbs, with a preference for the approved dictionary word where one exists | Categories of <b>preserved</b> terms, with a prohibition on substituting a dictionary word (Rule 2.2) | A legal term of art is a name for a rule, not a hard synonym for an easy word |
| Synonyms             | Select one, discard the rest                                                                                        | Follow the source (Rule 2.3); never vary within a document (Rule 11.2)                                | Varied vocabulary is evidence of varied meaning                               |
| One meaning per word | Applies to the whole vocabulary                                                                                     | Applies to the dictionary only; defined terms take the source's meaning (Rule 2.4)                    | Definitions in the source displace ordinary meaning                           |

| Subject         | Technical-standard approach                                 | CLW approach                                                                                                  | Reason                                                                                                                           |
|-----------------|-------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------|
| Ambiguity       | Remove it                                                   | Preserve and mark it where it exists in the source (Rule 10.4)                                                | Resolving it substitutes the writer's construction for the law                                                                   |
| Active voice    | Required; passive permitted only where the agent is unknown | Required, with a second exception where the source does not name an actor (Rules 3.6, 10.6)                   | An agentless passive in a statute is often deliberate; supplying an actor amends the rule                                        |
| Modal verbs     | A small approved set, treated as vocabulary                 | A closed set of seven operators with mapping rules and a decision record (Rules 3.1, 10.7)                    | The operator is the provision                                                                                                    |
| <i>shall</i>    | Generally handled as a disfavored word                      | Prohibited in drafting; mapped and documented in restatement; preserved in quotation (Rule 3.2, GR-1)         | Construction of <i>shall</i> is contested and the mapping is a legal judgment                                                    |
| Negation        | Not treated separately                                      | Four negative forms distinguished with a substitution table (Rule 3.3)                                        | <i>must not</i> and <i>need not</i> invert each other's legal effect                                                             |
| Sentence length | Typically 20 words for procedures, 25 for description       | 30 / 30 / 25 / 20 by register (Rule 4.1)                                                                      | A legal sentence must often carry an actor, an operator, a condition, and a citation; cutting shorter splits single propositions |
| Word count      | Numbers, abbreviations, and quoted text count as one word   | The same, extended to citations, case names, court names, defined terms, dates, and parentheticals (Rule 9.7) | Citations are unavoidable and would otherwise consume the whole budget                                                           |
| Semicolon       | Prohibited                                                  | Prohibited in drafting; permitted in quotation and in a reproduced statutory series (Rule 9.2)                | Statutory paragraph separators carry the conjunctive or disjunctive connector                                                    |
| Serial comma    | Not addressed                                               | Required outside quotation (Rule 9.1)                                                                         | Its absence has decided cases                                                                                                    |
| <i>and/or</i>   | Not addressed                                               | Prohibited in drafting; preserved and flagged in restatement (Rule 9.3)                                       | A century of judicial condemnation and no settled meaning                                                                        |

| Subject                   | Technical-standard approach                       | CLW approach                                                                                                                                         | Reason                                                                            |
|---------------------------|---------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------|
| Modifier scope            | Not addressed                                     | Restructure required (Rule 9.4, GR-2)                                                                                                                | Competing canons make the outcome unpredictable                                   |
| Vertical lists            | Formatting and parallelism rules                  | The same, plus the connector must appear in the introductory text, and the list must be marked conjunctive or disjunctive (Rule 4.4)                 | Whether a court must find all elements or any one is the content of the provision |
| Enumeration and structure | Free to restructure for clarity                   | Renumbering, reordering, merging, and splitting are prohibited in a restatement (Rule 5.6)                                                           | Paragraph designations are cited and incorporated by other provisions             |
| Cross-references          | Not addressed                                     | Must cite the smallest applicable provision; <i>the foregoing</i> and its relatives prohibited (Rule 5.5)                                            | Legal texts are a citation network                                                |
| Conditions                | Condition before command, with a comma            | The same, plus one condition per sentence, vertical lists for stacked conditions, and an explicit conjunctive or disjunctive marker (Rules 5.1, 5.2) | Stacked conditions are the normal case in law, not the exception                  |
| Provisos                  | Not addressed                                     | Prohibited; <i>notwithstanding</i> and <i>subject to</i> restricted to specific citations (Rule 5.4)                                                 | A proviso hides which of four functions it performs                               |
| Safety instructions       | Warnings and cautions, keyed to injury and damage | Replaced by consequence statements keyed to jurisdictional, mandatory, discretionary, and administrative severity (Section 8)                        | The legal analogue of physical risk is procedural consequence                     |
| Latin                     | Latin abbreviations discouraged                   | Abbreviations prohibited; Latin terms of art preserved as a category (Rule 1.7, GR-5)                                                                | <i>Res judicata</i> has no English equivalent; <i>inter alia</i> has an exact one |
| Doublets                  | Not addressed                                     | Prohibited in new drafting; preserved in restatement (Rule 1.6, GR-6)                                                                                | Some have been construed and dropping one drops content                           |
| Archaic words             | Handled as jargon                                 | A named prohibition list with replacements (Rule 1.5, Annex B)                                                                                       | Legalese is a distinct register with a distinct failure mode                      |
| Gendered                  | Gender-specific                                   | The same in drafting, with a                                                                                                                         | A quotation may not be                                                            |

| <b>Subject</b>             | <b>Technical-standard approach</b> | <b>CLW approach</b>                                                                                                                           | <b>Reason</b>                                                                          |
|----------------------------|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------|
| language                   | pronouns prohibited                | repeat-the-role technique; gendered language preserved in quotation (GR-4, Rule 2.7)                                                          | modernized                                                                             |
| Numbers                    | Deferred to project specification  | Numeral once; word-and-numeral doublet prohibited; period, trigger, and direction all required (Rules 9.5, 9.6)                               | The doublet creates amendment drift; an unstated trigger is a defect                   |
| Audience                   | One audience assumed               | Four registers with different obligations (General introduction, Rules 7.1, 7.2, 2.8)                                                         | Legal text is published simultaneously to courts, practitioners, and the public        |
| Advice                     | Not applicable                     | Prohibited: no advising, predicting, applying, or evaluating (Rule 10.5)                                                                      | A published restatement is not addressed to a client                                   |
| Delegated authority        | Not addressed                      | A drafter under delegation must confirm the enabling instrument authorizes each provision (Rule 6.8)                                          | Text beyond a delegation is void however well drafted                                  |
| Operator and instrument    | Not addressed                      | The operator must match the instrument's binding character (Rule 6.9)                                                                         | In administrative law a mandatory operator in a non-binding document can invalidate it |
| Incorporation by reference | Not addressed                      | A regulated act, distinct from citation (Rule 5.7)                                                                                            | It is how a private standard acquires the force of law                                 |
| Severability               | Not addressed                      | Stated, or confirmed from a general code provision (Rule 6.7)                                                                                 | Silence leaves the question to a court                                                 |
| Conformance                | A quality measure                  | Also potential evidence of intended meaning (General introduction)                                                                            | State courts cite drafting manuals to construe statutes                                |
| Verification               | Conformance is checked by reading  | Level 3 conformance requires a proposition ledger, bidirectional mapping, mechanical checks, independent review, and version binding (Part 3) | A fluent restatement can be silently wrong, and rereading does not catch it            |
| Machine-prose markers      | Not addressed                      | A named prohibition list (GR-9)                                                                                                               | Model-drafted restatements smuggle in characterization along with the tics             |

---

## Elements adopted without change

The following are taken from the general practice of controlled languages and are not divergences:

- Short sentences with a hard cap.
- One topic per sentence, one topic per paragraph, a paragraph cap.
- Active voice as the default.
- A verb, not a noun made from a verb.
- Consistent terminology across a document.
- No contractions, no omitted words, no omitted articles.
- No phrasal verbs.
- Vertical lists for complex enumerations.
- A dictionary with one part of speech and one meaning for each word.
- Connecting words to restore logic after splitting sentences.
- A change form and an issue-based revision cycle.

---

## Elements deliberately not adopted

- **A large controlled dictionary.** Annex A, divergence 1.
- **A single approved synonym for each concept.** Rule 2.3 follows the source instead.
- **Prohibition of the semicolon in all contexts.** Rule 9.2 carves out quotation and reproduced series.
- **A rule requiring the writer to resolve ambiguity.** Rule 10.4 requires the opposite.
- **Deferring abbreviations entirely to project specification.** Rule 9.8 states a first-use rule, because legal citation and legal abbreviation follow different conventions and the boundary needs stating.

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## Open questions for Issue 2

1. **Register R4 and terms of art.** R4 permits a described equivalent to follow a term of art. Whether this is safe for standards of review, and whether R4 should be restricted to procedural rather than substantive material, needs testing against reader comprehension data.
2. **Word count for citations.** Counting a full citation as one word is generous. If R2 restatements routinely run to 30 counted words with four citations, the effective sentence is long. A separate citation-density limit may be needed.
3. **Automation of checks 10 through 17.** These are specified and no published tooling implements them. Any such checker compares a ledger, a source, and a restatement. It has no independent view of the source, so it cannot find a proposition the ledger never recorded. Decomposition stays human work.
4. **Jurisdictional labeling.** Rule 8.1 requires the writer to decide whether a deadline is jurisdictional. This is a contested legal question in many cases, and the interaction between Rule 8.1 and Rule 10.4 needs a worked rule.
5. **Multi-source restatements.** The ledger assumes one source. A restatement that synthesizes a rule, a local rule, and a standing order needs a structure that records provenance for each proposition. Where

two such sources conflict, the ledger flags the conflict. It does not reconcile it, because reconciling is construction.

6. **Jurisdiction profiles.** Several rules now turn on jurisdiction: whether *shall* is the governing operator (Rule 3.2), whether headings are construable (Rule 6.5), which retroactivity default applies (Rule 6.6), and whether a general severability provision exists (Rule 6.7). A short per-jurisdiction profile stating these defaults may serve better than qualifying each rule in place. Each profile is legal research rather than a drafting exercise. An uncited answer in a profile is worse than a blank one, because a reader will rely on it.
7. **Comprehension testing.** Registers R3 and R4 are asserted, not tested. The jury instruction projects show the work can be done, and doing it would put this standard on evidentiary footing.

# Annex B — Legalese replacement table

Normative for Rule 1.5 and Rule 11.3. Preserve every listed word in quoted text (Rule 2.7).

## Pointing compounds

| Not CLW                       | CLW                                                    |
|-------------------------------|--------------------------------------------------------|
| aforementioned, aforesaid     | the, that, or name the thing                           |
| hereafter (in this document)  | after this section, or cite the provision              |
| hereby                        | delete                                                 |
| herein                        | in this rule, in this agreement, or cite the provision |
| hereinabove, hereinbefore     | in subsection (b), or cite the provision               |
| hereinafter                   | name the thing at first use in a parenthetical         |
| hereinbelow                   | in subsection (d), or cite the provision               |
| hereof                        | of this rule, or name the thing                        |
| hereto                        | to this agreement, or name the thing                   |
| heretofore                    | before this, or state the date                         |
| hereunder                     | under this rule, or cite the provision                 |
| herewith                      | with this, or name the thing                           |
| said (as adjective)           | the, that, or name the thing                           |
| same (as pronoun)             | it, or name the thing                                  |
| such (as pointer)             | the, that, or name the thing                           |
| thereafter (in that document) | after that, or name the event                          |
| thereby                       | delete, or state the mechanism                         |
| therefor                      | for it, or name the thing                              |
| therefrom                     | from it, or name the thing                             |
| therein                       | in it, or cite the provision                           |

| Not CLW     | CLW                             |
|-------------|---------------------------------|
| thereof     | of it, or name the thing        |
| thereon     | on it, or name the thing        |
| thereto     | to it, or name the thing        |
| theretofore | before that, or state the date  |
| thereunder  | under it, or cite the provision |
| therewith   | with it, or name the thing      |
| whereby     | delete, or state the mechanism  |
| wherein     | in which, or cite the provision |
| whereof     | of which, or name the thing     |
| whereupon   | then, or when                   |

## Ceremonial words

| Not CLW                             | CLW                                     |
|-------------------------------------|-----------------------------------------|
| to wit                              | namely, or delete                       |
| witnesseth                          | delete                                  |
| whereas (in recitals)               | delete, or state the fact as a sentence |
| now, therefore                      | delete                                  |
| in witness whereof                  | delete                                  |
| know all men by these presents      | delete                                  |
| the party of the first part         | name the party                          |
| whatsoever, whensoever, wheresoever | delete                                  |

## Wordy prepositional phrases

| Not CLW          | CLW  |
|------------------|------|
| at the time when | when |

| <b>Not CLW</b>                | <b>CLW</b>        |
|-------------------------------|-------------------|
| by means of                   | by                |
| by reason of                  | because of        |
| by virtue of                  | under             |
| during such time as           | while             |
| for the duration of           | during            |
| for the purpose of            | to                |
| in accordance with            | under             |
| in a case in which            | if                |
| in connection with            | about, under      |
| in lieu of                    | instead of        |
| in order to                   | to                |
| in relation to                | about             |
| in the event that             | if                |
| in the event of               | if                |
| notwithstanding the fact that | although          |
| on the ground that            | because           |
| on the part of                | by                |
| prior to                      | before            |
| pursuant to                   | under             |
| subsequent to                 | after             |
| until such time as            | until             |
| with reference to             | about             |
| with respect to               | about, for, under |
| with a view to                | to                |

## Inflated verbs

| Not CLW                 | CLW                                      |
|-------------------------|------------------------------------------|
| accord (v)              | give                                     |
| adjudicate              | decide                                   |
| ascertain               | find out, determine                      |
| commence                | begin, file                              |
| deem                    | treat as, or restate                     |
| effectuate              | do, perform                              |
| endeavor                | try                                      |
| evidence (v)            | show                                     |
| execute (a document)    | sign                                     |
| furnish                 | give                                     |
| initiate                | begin, file                              |
| institute (proceedings) | file, begin                              |
| obtain                  | get                                      |
| procure                 | get                                      |
| render (a decision)     | decide, issue                            |
| terminate               | end                                      |
| transmit                | send (preserve where the source uses it) |
| utilize                 | use                                      |

## Phrasal verbs

Rule 11.3 gives the table. Preserve *hand down*, *hold over*, *set aside*, and *strike down* as terms of art.

# Annex C — Change form

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MLP-1 is maintained by Michigan Legal Publishing Ltd. Send a change request using this form.

| Field                                                       | Entry |
|-------------------------------------------------------------|-------|
| Issue and date of the standard                              |       |
| Rule, dictionary entry, or annex affected                   |       |
| Change requested                                            |       |
| Reason for the change                                       |       |
| <b>For a dictionary entry only</b>                          |       |
| Proposed approved meaning, or proposed alternatives         |       |
| Example of correct use (CLW)                                |       |
| Example of incorrect use (not CLW)                          |       |
| <b>All requests</b>                                         |       |
| Supporting authority (statute, rule, case, drafting manual) |       |
| Submitted by                                                |       |
| Organization                                                |       |
| Email                                                       |       |
| Date                                                        |       |

## For internal use

| Field                             | Entry |
|-----------------------------------|-------|
| Assessment                        |       |
| Decision                          |       |
| Issue in which the change appears |       |

## Document history

| Issue | Date  | Scope                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|-------|-------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1     | Draft | First release. Part 1 (11 sections, 73 rules, 10 general recommendations), Part 2 (dictionary framework and core word list), Part 3 (conformance and verification), Annexes A through C.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 2     | Draft | Adds Rules 2.9, 5.7, 6.7, 6.8, 6.9 and 9.9, and GR-11. Adds an order of precedence and a note on conformance and construction to the General introduction. Revises Rules 2.8, 3.1, 3.2, 3.6, 5.1, 6.5, 6.6, 7.3 and GR-4. Adds blind reconstruction as Step 6 of the verification procedure, and a blocking and advisory distinction to the conformance regime. Closes the <i>should</i> carve-out in Rule 3.1: <i>should</i> is not available at any register. Adds a declaratory mapping for <i>shall</i> to Rules 3.2 and 10.7, and a note to Rule 10.7 that an inverted conditional <i>should</i> is not an operator, and that a <i>should</i> inside a stated test is preserved under Rule 2.2. Cross-references Rule 4.4 from Rules 4.1 and 10.8, where the word cap would otherwise split a conjunctive series. Corrects the scope of the Plain Writing Act in the reference documents. Part 1 now has 79 rules and 11 general recommendations. Condenses the Notices. |

*End of MLP-1.*